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MAJORITY VIEW â " SHELAT & GROVER JJ. (Excerpt)

Shelat and Grover, JJ.

509. All the six writ petitions involve common questions as to the validity of the 24th, 25th and 29th amendments to the Constitution. It is not necessary to set out the facts which have already been succinctly stated in the judgment of the learned Chief Justice.

510. It was considered, when the larger bench was constituted, that the decision of the

questions before us would hinge largely on the correctness or otherwise of the decision of

this court in I.C. Golak Nath and Ors. v. State of Punjab and Anr. [1967] 2 S.C.R. 762,

according to which it was held, by majority, that Article 13(2) of the Constitution was

applicable to Constitutional amendments made under Article 368 and that for that reason

the fundamental rights in Part III could not be abridged in any manner or taken away. The

decision in Golak Nath has become academic, for even on the assumption that the majority decision in that case was not correct, the result on the questions now raised

before us, in our opinion, would just be the same. The issues that have been raised travel

far beyond that decision and the main question to be determined now is the scope, ambit

and extent of the amending power conferred by Article 368. On that will depend largely

the decision of the other matters arising out of the 25th and the 29th amendments.

511. The respective positions adopted by learned Counsel for the parties diverge widely

and are irreconcilable. On the side of the petitioners, it is maintained inter alia that the

power of the amending body (Parliament) under Article 368 is of a limited nature. The

Constitution gave the Indian citizens the basic freedoms and a polity or a form of

government which were meant to be lasting and permanent. Therefore, the amending power does not extend to alteration or destruction of all or any of the essential features,

basic elements and fundamental principles of the Constitution which power, it is said,

vests in the Indian people alone who gave the Constitution to themselves, as is stated in

its Preamble.

512. The respondents, on the other hand, claim an unlimited power for the amending

body. It is claimed that it has the full constituent power which a legal sovereign can exercise provided the conditions laid down in Article 368 are satisfied. The content and amplitude of the power is so wide that, if it is so desired, all rights contained in Part II

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(Fundamental Rights) such as freedom of speech and expression; the freedom to form associations or unions and the various other freedoms guaranteed by Article 19(1) as also the right to freedom of religion as contained in Articles 25 to 28 together with the protection of interests of minorities (to mention the most prominent ones) can be abrogated and taken away. Similarly, Article 32 which confers the right to move this Court, if any fundamental right is breached, can be repealed or abrogated. The directive principles in Part IV can be altered drastically or even abrogated. It is claimed that democracy can be replaced by any other form of government which may be wholly undemocratic, the federal structure can be replaced by a unitary system by abolishing all the States and the right of judicial review can be completely taken away. Even the Preamble which declares that the People of India gave to themselves the Constitution, to constitute India into a Sovereign Democratic Republic for securing the great objectives mentioned therein can be amended; indeed it can be completely repealed. Thus, according to the respondents, short of total abrogation or repeal of the Constitution, the amending body is omnipotent under Article 368 and the Constitution can, at any point of time, be amended by way of variation, addition or repeal so long as no vacuum is left in the governance of the country.

513. These petitions which have been argued for a very long time raise momentous issues of great Constitutional importance. Our Constitution is unique, apart from being the longest in the world. It is meant for the second largest population with diverse people speaking different languages and professing varying religions. It was chiselled and shaped by great political leaders and legal luminaries, most of whom, had taken an active part in the struggle for freedom from the British yoke and who knew what domination of a foreign rule meant in the way of deprivation of basic freedoms and from the point of view of exploitation of the millions of Indians. The Constitution is an organic document which must grow and it must take stock of the vast socioeconomic problems, particularly, of improving the lot of the common man consistent with his dignity and the unity of the nation.

514. We may observe at the threshold that we do not propose to examine the matters raised before us on the assumption that Parliament will exercise the power in the way claimed on behalf of the respondents nor did the latter contend that it will be so done. But while interpreting Constitutional provisions it is necessary to determine their width or reach in fact the area of operation of the power, its minimum and maximum dimensions cannot be demarcated or determined without fully examining the rival claims. Unless that is done, the ambit, content, scope and extent of the amending power cannot be properly and correctly decided.

515. For our purposes it is not necessary to go prior to the year 1934. It was in that year that the Indian National Congress made the demand for a Constituent Assembly as part of its policy. This demand was repeated in the Central Legislative Assembly in 1937 by the representatives of the Congress. By what is known as the Simla Conference 1945 the Congress repeated its stand that India could only accept the Constitution drawn by the people. After the end of World War II the demand was put forward very strongly by the Indian leaders including Mahatma Gandhi. Sir Stratford Cripps representing Britain had also accepted the idea that an elected body of Indians should frame the Indian Constitution. (The facts have been taken mainly from the Indian Constitution, Cornerstone of a Nation, by Granville Austin). In September 1945 the newly elected British Labour Government announced that it favoured the creation of a constituent body in India. Elections were to be held so that the newly elected provincial legislatures

could act as electoral bodies for the Constituent Assembly. A parliamentary delegation was sent to India in January 1946 and this was followed by what is known as the Cabinet Mission. There were a great deal of difficulties owing to the differences between the approach of the Indian National Congress and the Muslim League led by Mr. M.A. Jinnah. The Cabinet Mission devised a plan which was announced on May 16, 1946. By the end of June, both the Muslim League and the Congress had accepted it with reservations. The Constituent Assembly was elected between July-August 1946 as a result of the suggestion contained in the statement of the Cabinet Mission. The Attlee Government's efforts to effect an agreement between the Congress and the Muslim League having failed, the partition of the country came as a consequence of the declaration of the British Government on June 3, 1947. As a result of that declaration certain changes took place in the Constituent Assembly. There was also readjustment of representation of Indian States from time to time between December 1946 and November 1949. Many Smaller States merged into the provinces, many united to form union of States and some came to be administered as commissioner's provinces. There was thus a gradual process by which the Constituent Assembly became fully representative of the various communities and interests, political, intellectual, social and cultural. It was by virtue of Section 8 of the Indian Independence Act 1947 that the Constituent Assembly was vested with the legal authority to frame a Constitution for India.

516. The first meeting of the Constituent Assembly took place on December 9, 1946 when the swearing in of members and election of a temporary president to conduct the business until the installation of a permanent head, took place. On December 13, 1946 Pandit Jawahar Lal Nehru moved the famous "Objectives Resolution" giving an outline, aims and objects of the Constitution. This resolution was actually passed on January 22, 1947 by all members of the Constituent Assembly (standing) and it declared among other matters that all power and authority of the sovereign Independent India, its constituent parts and organs of Government are derived from the people. By November 26, 1949 the deliberations of the Constituent Assembly had concluded and the Constitution had been framed. As recited in the Preamble it was on that date that the people of India in the Constituent Assembly adopted, enacted and gave to themselves "this Constitution" which according to Article 393 was to be called "The Constitution of India". In accordance with

Article 394 that Article and the other Articles mentioned therein were to come into force at once but the remaining provisions of the Constitution were to come into force on the 26th day of January 1950.

517. Before the scheme of the Constitution is examined in some detail it is necessary to give the pattern which was followed in framing it. The Constituent Assembly was unfettered by any previous commitment in evolving a Constitutional pattern "suitable to the genius and requirements of the Indian people as a whole". The Assembly had before it the experience of the working of the Government of India Act 1935, several features of which could be accepted for the new Constitution. Our Constitution borrowed a great deal from the Constitutions of other countries, e.g. United Kingdom, Canada, Australia, Ireland, United States of America and Switzerland. The Constitution being supreme all the organs and bodies owe their existence to it. None can claim superiority over the other and each of them has to function within the four-corners of the Constitutional provisions. The Preamble embodies the great purposes, objectives and the policy underlying its provisions apart from the basic character of the State which was to come into existence i.e. a Sovereign Democratic Republic. Parts III and IV which embody the fundamental rights and directive principles of state policy have been described as the conscience of the Constitution (The Indian Constitution by Granville Austin p. 50) The legislative power distributed between the Union Parliament and the State Legislatures cannot be so exercised as take away or abridge the fundamental rights contained in Part III. Powers of the Union and the States are further curtailed by conferring the right to enforce fundamental rights contained in Part III by moving the Supreme Court for a suitable relief See generally, Kania C.J. in A.K. Gopalan v. The State [1950] S.C.R. 88 at pp. 96-97, Article 32 itself has been constituted a fundamental right. Part IV containing the directive principles of State policy was inspired largely by similar provisions in the Constitution of the Eire Republic (1937). This Part, according to B.N. Rao; is like an Instrument of Instructions from the ultimate sovereign, namely, the people of India (B.N. Rao, India's Constitution in the Making p. 393). The Constitution has all the essential elements of a federal structure as was the case in the Government of India Act 1935, the essence of federalism being the distribution of powers between the federation or the Union and the States or, the provinces. All the legislatures have plenary powers but these are

controlled
by the basic concepts of the Constitution itself and they function within the
limits laid
down in it Per Gajendragadkar C.J. in Special Reference No. 1 of 1964, [1965] 1
S.C.R.
413 at p. 445. All the functionaries, be they legislators, members of the
executive or the
judiciary take oath of allegiance to the Constitution and derive their authority
and
jurisdiction from its provisions. The Constitution has entrusted to the
judicature in this
country the task of construing the provisions of the Constitution and of
safeguarding the
fundamental rights Ibid p. 446. It is a written and controlled Constitution. It
can be
amended only to the extent of and in accordance with the provisions contained
therein,
the principal provision being Article 368. Although our Constitution is federal
in its
structure it provides a system modelled on the British parliamentary system. It
its the
executive that has the main responsibility for formulating the governmental
policy by
"transmitting it into law" whenever necessary. â™The executive function
comprises both the
determination of the policy as well as carrying it into execution. This
evidently includes
the initiation of legislation, the maintenance of order, the promotion of social
and
economic welfare, the direction of foreign policy, in fact the carrying on or
supervision of
the general administration of the State." R.S. Ram Jawaya Kapur and Ors. v. The
State of
Punjab (1955) 2 S.C.R. 225 at p. 236. With regard to the civil services and the
position of
the judiciary the British model has been adopted inasmuch as the appointment of
judges
both of the Supreme Court of India and of the High Courts of the States is kept
free from
political controversies. Their independence has been assured. But the doctrine
of
parliamentary sovereignty as it obtains in England does not prevail here except
to the
extent provided by the Constitution. The entire scheme of the Constitution is
such that it
ensures the sovereignty and integrity of the country as a Republic and the
democratic way
of life by parliamentary institutions based on free and fair elections.
518. India is a secular State in which there is no State religion. Special
provisions have
been made in the Constitution guaranteeing the freedom of conscience and free
profession, practice and propagation of religion and the freedom to manage
religious
affairs as also the protection of interests of minorities. The interests of
scheduled castes
and the scheduled tribes have received special treatment. The Rule of Law has
been

ensured by providing for judicial review. Adult suffrage, the "acceptance of the fullest implications of democracy" is one of the most striking features of the Constitution.

According to K.M. Pannikar, "it may well be claimed that the Constitution is a solemn promise to the people of India that the legislature will do everything possible to renovate and reconstitute the society on new principles (Hindu Society at crossroads (By K.M.

Pannikar) at pages 63-64).

519. We may now look at the Preamble.

520. It reads:

We, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN DEMOCRATIC REPUBLIC and to secure to all its citizens:

JUSTICE, social, economic and political;
LIBERTY of thought, expression, belief, faith and worship;
EQUALITY of status and of opportunity; and to promote among them all;
FRATERNITY assuring the dignity of the individual and the unity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.

It may be mentioned that this Preamble and indeed the whole Constitution was drafted in

the light of and directions contained in the "OBJECTIVES RESOLUTION" adopted on January 22, 1947.

521. According to Granville Austin (Cornerstone of a nation (Indian Constitution) by

Granville Austin, p. 75), directive principles of State policy set forth the humanitarian

socialist precepts that were the aims of the Indian social revolution. Granville Austin,

while summing up the interrelationship of fundamental rights and directive principles,

says that it is quite evident that the fundamental rights and the directive principles were

designed by the members of the Assembly to be the chief instruments in bringing about

the great reforms of the social revolution. He gives the answer to the question whether

they have helped to bring the Indian society closer to the Constitution's goal of social,

economic and political justice for all in the affirmative (Indian Constitution (Cornerstone

of a nation) by Granville Austin p. 113). Das C.J. in Re : Kerala Education Bill 1957

[1959] S.C.R. 995 at p. 1020 made the following observations with regard to Parts III and

IV:

While our Fundamental Rights are guaranteed by Part III of the Constitution, Part IV of it on the other hand, lays down certain directive principles of State policy. The provisions contained in that Part are not enforceable by any court but the principles therein laid down are, nevertheless, fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws. Article 39 enjoins the State to direct its policy towards securing, amongst other

things, that the citizens, men and women, equally, have the right to an adequate means of livelihood.

Although in the previous decisions of this Court in *State of Madras v. Smt. Champdkam*

Dorairajan [1951] S.C.R. 525 at p. 531 and *Mohd. Hanif Qureshi and Ors. v. The State of*

Bihar [1959] S.C.R. 629 it had been held that the directive principles of State policy had

to conform to and run subsidiary to the Chapter of Fundamental Rights, the learned Chief

Justice was of the view which may be stated in his own words:

Nevertheless in determining the scope and ambit of the fundamental rights relied on by or on behalf of any person or body the court may not entirely ignore these directive principles of State policy laid down in Part IV of the Constitution but should adopt the principle of harmonious construction and should attempt to give effect to both as much as possible.

522. The first question of prime importance involves the validity of the Constitution

Amendment Act 1971 (hereinafter called the 24th Amendment). It amended Article 368

of the Constitution for the first time. According to the Statement of Objects and Reasons

in the Bill relating to the 24th amendment, the result of the judgment of this Court in

Golak Nath & Ors [1967] 2 S.C.R. 762 case has been that Parliament is considered to have no

power to take away or curtail any of the fundamental rights guaranteed by Part III of the

Constitution even if it becomes necessary to do so for giving effect to the Directive

Principles of State Policy and for attainment of the Objectives set out in the Preamble to

the Constitution. It became, therefore, necessary to provide expressly that Parliament has

the power to amend any provision of the Constitution including the provisions contained

in Part III.

523. Article 368 is in a separate Part i.e. Part XX. Its marginal note before the 24th

Amendment was "Procedure for amendment of the Constitution". It provided in the substantive portion of the Article how the Constitution "shall stand amended" when "An

Amendment of this Constitution" was initiated by the introduction of a Bill in either

House of Parliament. The following conditions had to be satisfied:

(i) The Bill had to be passed in each House by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of that House present and voting.

(ii) The Bill had to be presented for the assent of the President and his assent had to be obtained.

Under the proviso, it was necessary to obtain ratification of legislatures of not less than

one half of the States by Resolutions before presenting the Bill to the President for assent

if the amendment sought to make any change in the Articles, Chapters etc. mentioned in

Clauses (a) to (e) Clause (e) was "the provisions of this Article".

524. The 24th Amendment made the following changes:

(i) The marginal heading has been substituted by "Power of Parliament to amend the Constitution and procedure there-for".

(ii) Article 368 has been re-numbered as Clause (2).

(iii) Before Clause (2), the following clause has been inserted:

Notwithstanding anything in this Constitution, Parliament may in exercise of the Constituent power amend by way of addition, variation or repeal any provision of this Constitution in accordance with the procedure laid down in this article.

(iv) In Clause (2) as renumbered, for the words "it shall be presented to President for his assent and upon such assent being given to the Bill" the words "it shall be presented to the President who shall give his assent to the Bill and thereupon" have been substituted.

(v) A new Clause (3) has been inserted, namely:

(3) Nothing in Article 13 shall apply to any amendment made under this article.

It may be mentioned that by the 24th amendment Clause (4) has been inserted in Article

13 itself. It is:

(4) Nothing in this Article shall apply to any amendment of this Constitution made under Article 368.

525. On behalf of the petitioners, Mr. Palkhivala stated that he need not for the purposes

of this case dispute the 24th Amendment in so far as it leads to the following results:

(i) The insertion of the express provision in Article 368 that the source of the amending power is the Article itself.

(ii) The President is bound to give assent to any Bill duly passed under that Article.

The following three results have, however, been the subject of great deal of argument:

(i) The substitution of the words in Article 368 "amend by way of addition, variation or repeal..." in place of the concept "amendment".

(ii) Making it explicit in the said Article that when Parliament makes a Constitutional amendment under the Article it acts "in exercise of its constituent power".

(iii) The express provision in Article 13 and 368 that the bar in the former Article against abridging or taking away any of the fundamental rights should not apply to an amendment made under the latter Article.

In the judgment of Chief Justice Subba Rao with whom four learned judges agreed

in

Golak Nath's case the source of the amending power was held to reside in Article 248

read with entry 97 of List I to the Seventh Schedule. Whether that view is sustainable or

not need not be considered here now owing to the concession made by Mr. Palkhivala

that by amendment of Article 368 such a power could be validly located in that Article

even if it be assumed that it did not originally reside there. The real attack, therefore, is

directed against the validity of the 24th Amendment in so far as the three results

mentioned above are concerned. It has been maintained that if the effect of those results

is that the Parliament has clothed itself with legal sovereignty which the People of India

alone possess, by taking the full constituent power, and if the Parliament can in exercise

of that power alter or destroy all or any of the "essential features" of the Constitution, then

the 24th Amendment will be void. The fundamental rights embodied in Part III are a part of

the "essential features" and if their essence or core can be damaged or taken away, the 24th

amendment will be void and illegal.

526. The position taken up on behalf of the respondents is that so far as Article 368 is concerned, the 24th Amendment has merely clarified the doubts cast in the majority judgment in *Golak Nath*. That Article, as it originally stood, contained the constituent power by virtue of which all or any of the provisions of the Constitution including the Preamble could be added to, varied or repealed. In other words, the power of amendment was unlimited and unfettered and was not circumscribed by any such limitations as have been suggested on behalf of the petitioners. Therefore, the crux of the matter is the determination of the true ambit, scope and width of the amending provisions contained in Article 368 before the changes and alterations made in it by the 24th Amendment. If the Article conferred the power of the amplitude now covered by the 24th Amendment nothing new has been done and the amendment cannot be challenged. If, however, the original power though having the constituent quality was a limited one, it could not be increased. In other words the amending body cannot enlarge its own powers.

527. What then is the meaning of the word "amendment" as used in Article 368 of the Constitution. On behalf of the respondents it has been maintained that "amendment" of this Constitution" can have only one meaning. No question, can arise of resorting to other aids in the matter of interpretation or construction of the expression "amendment." On the other hand, the argument of Mr. Palkhivala revolves on the expression "amendment" which can have more than one meaning and for that reason it is essential to discover its true import as well as ambit by looking at and taking into consideration other permissible aids of construction. No efforts have been spared on both sides to give us all the meanings of the words "amendment" and "amend" from the various dictionaries as also authoritative books and opinions of authors and writers.

528. It is more proper, however, to look for the true meaning of the word "amendment" in the Constitution itself rather than in the dictionaries. Let us first analyse the scheme of Article 368 itself as it stood before the 24th Amendment.

(i) The expression "amendment of the Constitution" is not defined or explained in any manner although in other Parts of the Constitution the word "amend" as will be noticed later has been expanded by use of the expression "amend by way of addition, variation or repeal.

(ii) The power in respect of amendment has not been conferred in express terms. It can be spelt out only by necessary implication.

(iii) The proviso uses the words "if such amendment seeks to make any change in". It does not use the words "change of" or "change" simpliciter.

(iv) The provisions of the Constitution mentioned in the proviso do not show that the basic structure of the Constitution can be changed if the procedure laid down therein is followed. For instance, Clause (a) in the proviso refers to Articles 54 and 55 which relate to the election of the President. It is noteworthy that Article 52 which provides that there shall be a President of India and Article 53 which vests the power of the Union in the President and provides how it shall be exercised are not included in Clause (a). It is incomprehensible that the Constitution makers intended that although the ratification of the legislatures of the requisite number of States should be obtained if any changes were to be made in Articles 54 and 55 but that no such ratification was necessary if the office of the President was to be abolished and the executive power of the Union was to be exercised by some other person or authority.

(v) Another Article which is mentioned in Clause (a) is Article 73 which deals with the extent of the executive power of the Union. So far as the Vice-President is concerned there is no mention of the relevant Articles relating to him. In other words the States have been given no voice in the question whether the office of the Vice-President shall be continued or abolished or what the method of his election would be.

(vi) The next Article mentioned in Clause (a) is 162 which deals with the extent of the executive power of the States. The Articles relating to the appointment and conditions of service of a Governor, Constitution and functions of his council of ministers as also the conduct of business are not mentioned in Clause (a) or any other part of the proviso.

(vii) Along with Articles 54, 55, 73 and 162. Article 241 is mentioned in Clause (a) of the proviso. This Article dealt originally only with the High Courts for States in Part C of the First Schedule.

(viii) Chapter IV of Part V of the Constitution deals with the Union Judiciary and Chapter V of Part VI with the High Courts in the States.

Although these have been included in Clause (b) of the proviso it is surprising that Chapter VI of Part VI which relates to Subordinate Judiciary is not mentioned at all, which is the immediate concern of the States.

(ix) Chapter I of Part XI which deals with legislative relations between the Union and the States is included in Clause (b) of the proviso but Chapter II of that Part which deals with Administrative Relations between the Union and the States and various other matters in which the States would be vitally interested are not included.

(x) The provisions in the Constitution relating to services under the State as also with regard to Trade and Commerce are not included in the proviso.

(xi) Clause (c) of the proviso mentions the lists in the Seventh Schedule. Clause (d) relates to the representation of States in Parliament and Clause (c) to the provisions of Article 368 itself.

529. The net result is that the provisions contained in Clauses (a) and (b) of the proviso

do not throw any light on the logic, sequence or systematic arrangement in respect of the

inclusion of those Articles which deal with the whole of the federal structure.

These

clauses demonstrate that the reason for including certain Articles and excluding other

from the proviso was not that all Articles dealing with the federal structure or the States

had been selected for inclusion in the proviso. The other unusual result is that if the

fundamental rights contained in Part III have to be amended that can be done without

complying with the provisions of the proviso. It is difficult to understand that the

Constitution makers should not have thought of ratification by the States if such

important and material rights were to be abrogated or taken away wholly or partially. It is

also interesting that in order to meet the difficulty created by the omission of Articles 52

and 53 which relate to there being a President in whom the executive functions of the

Union would vest, the learned Solicitor General sought to read by implication the

inclusion of those Articles because according to him, the question of election cannot arise

with which Articles 54 and 55 are concerned if the office of President is abolished.

530. We may next refer to the use of the words "amendment" or "amended" in other articles of the Constitution. In some articles these words in the context have a wide

meaning and in another context they have a narrow meaning. The group of articles which

expressly confer power on the Parliament to amend are five including Article 368. The

first is Article 4. It relates to laws made under Articles 2 and 3 to provide for amendment

of the First and the Second Schedules and supplemental, incidental and consequential

matters. The second Article is 169 which provides for abolition or creation of Legislative

Councils in States. The third and the fourth provisions are paras 7 and 21 of the 5th and 6th Schedules respectively which have to be read with Article 244 and which deal with the administration of Scheduled Areas and Tribal Areas. The expression used in Articles 4 and 169 is "amendment". In paras 7 and 21 it is the expanded expression "amendment by way of addition, variation or repeal" which has been employed. Parliament has been empowered to make these amendments by law and it has been expressly provided that no such law shall be deemed to be an amendment of the Constitution for the purpose of Article 368.

531. It is apparent that the word "amendment" has been used in a narrower sense in Article 4. The argument that if it be assumed that Parliament is invested with wide powers under Article 4 it may conceivably exercise power to abolish the legislative and the judicial organs of the State altogether was refuted by this Court by saying that a State cannot be formed, admitted or set up by law under Article 4 by the Parliament which does not conform to the democratic pattern envisaged by the Constitution Mangol Singh and Anr. v. Union of India [1967] 2 S.C.R. 109 at p. 112. 88 at pp. 96-97. Similarly any law which contains provisions for amendment of the Constitution for the purpose of abolition or creation of legislative councils in States is only confined to that purpose and the word "amendment" has necessarily been used in a narrow sense. But in Paras 7 and 21 the expanded expression is employed and indeed an attempt was made even in the Constituent Assembly for the insertion of a new clause before Clause (1) of draft Article 304 (Present Article 368). The amendment (Constituent Assembly Debates Vol. 9, p. 1663) (No. 3239) was proposed by Mr. H.V. Kamath and it was as follows: Any provision of this Constitution may be amended, whether by way of variation, addition or repeal, in the manner provided in this article. Mr. Kamath had moved another amendment in draft Article 304 to substitute the words

"it shall upon presentation to the President receive his assent". Both these amendments were negatived by the Constituent Assembly Ibid. It is noteworthy that the 24th amendment as now inserted has introduced substantially the same amendments which were not accepted by the Constituent Assembly.

532. The Constituent Assembly, must be presumed to be fully aware of the expanded expression, as on September 17, 1949 it had substituted the following section in place of

the old Section 291 of the Government of India Act 1935 by means of Constituent Assembly Act 4 of 1949:

291. Power of the Governor General to amend certain provisions of the Act and order made thereunder.(1) The Governor General may at any time by Order make

such amendments as he considers necessary whether by way of addition, modification, or repeal, (emphasis supplied) in the provisions of this Act or of any Order made thereunder in relation to any Provincial Legislature with respect to any of the following matters, that is to say,(a) ...

The word "amendment" has also been used in certain Articles like Article 107 dealing with legislative procedure and Article 111 which enables the President to send a message

requesting the Houses to consider the desirability of introducing amendments etc.,

"Amendment" as used in these Articles could only have a limited meaning as is apparent

from the context. On behalf of the petitioners a great deal of reliance has been placed on

the contrast between the use of the word "amendment" in Article 4 and 169 and paras 7

and 21 of the 5th and 6th Schedules which use the composite expression "amend by way

of addition, variation or repeal." It is pointed out that in Article 368 it is only the word

"amendment" which has been used and if the Constitution makers intended that it should

have the expanded meaning then there was no reason why the same phraseology would

not have been employed as in paras 7 and 21 or as has been inserted now by the 24th

amendment. The steps in this argument are:

(i) The contrast in the language employed in the different provisions of the Constitution in respect of amendment;

(ii) conferment of the wider power for the purpose of the 5th and 6th Schedules which empower the Parliament to alter and repeal the provisions of those Schedules relating to the institutions contemplated by them, the law making authority set up under them and the fundamental basis of administration to be found in the two Schedules.

(iii) the wide language used in paras 7 and 21 of the two Schedules was meant for the purpose that at a proper time in the future or whenever considered necessary the entire basic structure of the Schedules could be repealed and the areas and tribes covered by them could be governed and administered like the rest of India.

(iv) the use of the word "amendment" simpliciter in Article 368 must have a narrower meaning than the composite expression "amend" or "amendment" by way of addition, variation or repeal and must correspond to the meaning of the word "amend" or "amendment" in Articles 4 and

169.

(v) The power of amending the Constitution is not concentrated in Article 368 alone but it is diffused as it is to be found in the other Articles and provisions mentioned. The reason why it was added that no law passed by the Parliament under those provisions shall be deemed to be an amendment of this Constitution for the purpose of Article 368 was only meant to clarify that the form and manner prescribed by Article 368 was not to be followed and the Parliament could, in the ordinary way, by following the procedure laid down for passing legislative enactments amend the Constitution to the extent mentioned in those Articles and provisions.

533. The learned Advocate General of Maharashtra, who appears for respondent No. 1,

has laid a great deal of emphasis on the fact that Article 368 is the only Article which is

contained in a separate Part having the title "Amendment of the Constitution".

It is under

that article that all other provisions including Articles 4, 169 and paras 7 and 21 of the 5th

and

6th Schedules respectively can be amended. The latter group of articles contain a

limited power because those Articles are subordinate to Article 368. This is illustrated by

the categorical statement contained in each one of those provisions that no such law

amending the Constitution shall be deemed to be an amendment there of for the purpose of Article 368. As regards the composite expression "amend by way of addition, variation or repeal" employed in paras 7 and 21 of the two Schedules, it has been pointed out that Clause (2), in which the words "Amendment of this Constitution" are used clearly shows that addition, variation or repeal of any provision would be covered by the word "amendment". According to the learned Attorney General the word "amendment" must mean, variation addition or repeal. He has traced the history behind paras 7 and 21 of Schedules 5 and 6 to illustrate that the expression "amend by way of addition, variation or repeal" has no such significance and does not enlarge the meaning of the word "amendment". Our attention has been invited to a number of Articles in the Constitution itself out of which mention may be made of Articles 320(5) and 392(1) where the expressions used were "such modification, whether by way of repeal or amendment" and "such adoption whether by way of modification, addition or omission". It has been urged that the expression "amendment of this Constitution" has acquired substantive meaning over the years in the context of a written Constitution and it means that any part of the Constitution can be amended by changing the same either by variation, addition or repeal.

534. Dr. B.R. Ambedkar who was not only the Chairman of the Drafting Committee but also the main architect of the Constitution made it clear (Constituent Assembly Debates Vol. 9, page 1661) that the articles of the Constitution were divided into different categories; the first category was the one which consisted of articles which could be amended by the Parliament by a bare majority; the second set of articles were such which required the two-third majority. This obviously had reference to the group of articles consisting of Articles 4, 169 and paras 7 and 21 of the two Schedules and Article 368 respectively. The scheme of the amending provisions outlined by Dr. B.R. Ambedkar seems to indicate that the Constitution makers had in mind only one distinction between the amending power conferred by the other Articles and Article 368. No such distinction was present to their mind of the nature suggested by the learned Advocate General that the amending power conferred by Articles other than Article 368 was of a purely subordinate nature. In one sense the power contained in the first group of Articles can be said to be subordinate in those Articles themselves could be amended by the procedure prescribed by Article 368. But that Article itself could be amended by the same procedure. It would not, therefore, be wrong to say that the amending power was of a

diffused kind and was contained in more than one provision of the Constitution. It appears that the statement in the articles and provisions containing the amending power other than Article 368 that any amendment made under those articles would not amount to an amendment under Article 368 merely embodied the distinction emphasised by Dr.

B.R. Ambedkar that one category could be amended by the Parliament by a bare majority and all the other articles could be amended by the said body but only by following the form and manner prescribed by Article 368. Although prima facie it would appear that the Constitution makers did not employ the composite expression in Article 368 for

certain reasons and even rejected Mr. Kamath's amendment which pointedly brought to their notice that it was of material importance that the expanded expression should be used, it may not be possible to consider this aspect as conclusive for the purpose of

determining the meaning of the word "amendment" in Article 368.

535. According to Mr. Palkhivala there can be three possible meanings of amendment:

(i) to improve or better; to remove an error, the question of improvement being considered from the standpoint of the basic philosophy underlying the Constitution but subject to its essential features.

(ii) to make changes which may not tall within (i) but which do not alter or destroy any of the basic features, essential elements or fundamental principles of the Constitution.

(iii) to make any change whatsoever including changes falling outside (ii).

He claims that the preferable meaning is that which is contained in (i) but what is stated

in (ii) is also a possible construction. Category (iii) should be ruled out altogether.

Category (i) and (ii) have a common factor, namely that the essential features cannot be damaged or destroyed.

536. On behalf of the respondents it is not disputed that the words "amendment of this

Constitution" do not mean repeal or abrogation of this Constitution. The amending

power, however, is claimed on behalf of the respondents to extend to addition, alteration,

substitution, modification, deletion of each and every provision of the Constitution. The

argument of the Attorney General is that the amending power in Article 368 as it stood

before the 24th amendment and as it stands now has always been and continues to be the

constituent power, e.g., the power to deconstitute or reconstitute the Constitution or any

part of it. Constitution at any point of time cannot be so amended by way of variation,

addition or repeal as to leave a vacuum in the government of the country. The whole

object and necessity of amending power is to enable the Constitution to continue and such a constituent power, unless it is expressly limited in the Constitution itself, can by its very nature have no limit because if any such limit is assumed, although not expressly found in the Constitution, the whole purpose of an amending power will be nullified. It has been pointed out that in the Constitution First Amendment Act which was enacted soon after the Constitution of India came into force, certain provisions were inserted, others substituted or omitted and all these were described as amendments of the article mentioned therein. In the context of the Constitution, amendment reaches every provision including the Preamble and there is no ambiguity about it which may justify having resort to either looking at the other Articles for determining the ambit of the amendatory power or taking into consideration the Preamble or the scheme of the Constitution or other permissible aids to construction.

537. A good deal of reliance has been placed on behalf of the respondents on Article 5 of the Constitution of the United States hereinafter called the "American Constitution" which deals with amendment and its interpretation by the American courts. Reference has been made to the writings of authors and writers who have dealt with the meaning of the word "amendment" in the American Constitution. It has been argued that in Article 5 of that Constitution the word used is "amendments" and our Constitution makers had that word in mind when they employed the expression "amendment of this Constitution" in Article

368. We propose to refer to the decision from other countries including those of the Supreme Court of the United States later. We wish to observe, at this stage, that our founding fathers had primarily the Constitutions of Canada, Australia, Eire, U.S.A. and Switzerland in view apart from that of Japan. The whole scheme and language of Article

368 is quite different from the amending provisions in Constitutions of those countries. For instance, in U.S.A., Eire, Australia, Switzerland and Japan the people are associated in some manner or the other directly with the amending process. It would be purely speculative or conjectural to rely on the use of the word "amend" or "amendment" in the Constitution of another country unless the entire scheme of the amending section or article is also kept in mind. In India Parliament is certainly representative of the people but so are similar institutions in the countries mentioned above and yet there

is a provision for ratification by convention or referendum or submission of the proposed law to electors directly. Another way of discovering the meaning on which both sides relied on is to refer to the various speeches in the Constituent Assembly by the late Prime Minister Pandit Jawahar Lal Nehru and late Dr. B.R. Ambedkar the Chief Architects of the Constitution. The position which emerges from an examination of their speeches does not lead to any clear and conclusive result. Their Speeches show that our Constitution was to be an amendable one and much rigidity was not intended. Pandit Nehru time and again emphasised that while the Constitution was meant to be as solid and as permanent a structure as it could be, nevertheless there was no permanence in the Constitution and there should be certain flexibility; otherwise it would stop a nation's growth. Dr. Ambedkar, while dealing with draft Article 25 corresponding to the present Article 32, said that the most important Article without which the Constitution would be a nullity and which was the very soul of the Constitution and the heart of it was that Article. But what he said at a later stage appears to suggest that that article itself could be amended and according to the respondents even abrogated. This illustration shows that nothing conclusive can emerge by referring to the speeches for the purpose of interpretation of the word "amendment".

538. It is not possible to accept the argument on behalf of the respondents that amendment can have only one meaning. This word or expression has several meanings and we shall have to determine its true meaning as used in the context of Article 368 by taking assistance from the other permissible aids to construction. We shall certainly bear in mind the well known principles of interpretation and construction, particularly, of an instrument like a Constitution. A Constitution is not to be construed in any narrow and pedantic sense. A broad and liberal spirit should inspire those whose duty it is to interpret it.

it Gwyer C.J. In *Re. C.P. & Berar Sales of Motor Spirit & Motor Lubricants Taxation Act* 1938 [1939] F.C.R. 18 adopted the words of Higgins J., of the High Court of Australia from the decision in *Attorney General for New South Wales v. The Brewery Employees Union of New South Wales etc.* [1908] 6 C.L.R. 469 at pp. 611-612 according to which even though the words of a Constitution are to be interpreted on the same principles of interpretation as are applied to any ordinary law, these very principles of interpretation require taking into account the nature and scope of the Act remembering that "it is a Constitution, a mechanism under which laws are to be made and not a mere Act which

declares what the law is to be". [1939] F.C.R. 18, 37. The decision must depend on the words of the Constitution as provisions of no two Constitutions are in identical terms.

The same learned Chief Justice said that the "grant of the power in general terms standing by itself would no doubt be construed in the wider sense, but it may be qualified by other express provisions in the same enactment, by the implication of the context, and even by considerations arising out of what appears to be the general scheme of the Act." *ibid* p.

42. The observations of Lord Wright in *James v. Commonwealth of Australia* [1936] A.C. 578 at p. 613 were also quoted in the aforesaid judgment of the Federal Court of India at page 73:

The question, then, is one of construction and in the ultimate resort must be determined upon the actual words used read not in a vacuo but as occurring in a single complex instrument, in which one part may throw light on another. The Constitution has been described as the federal compact, and the construction must hold a balance between all its parts. Apart from the historical background and the scheme of the Constitution the use of the

Preamble has always been made and is permissible if the word "amendment" has more

than one meaning. Lord Green in *Bidis v. General Accident, Fire and Life Assurance*

Corporation [1948] 2 All. E.R. 998 pointed out that the words should never be interpreted

in vacuo because few words in the English language have a natural or ordinary meaning

in the sense that they must be so read that their meaning is entirely independent of their

context. The method which he preferred was not to take the particular words and attribute

to them a sort of *prima facie* meaning which may have to be displaced or modified. To

use his own words "it is to read the statute as a whole and ask oneself the question.

In this state, in this context, relating to this subject matter, what is the true

meaning of that word?"

We shall first deal with the Preamble in our Constitution. The Constitution makers gave

to the preamble the pride of place. It embodied in a solemn form all the ideals and

aspirations for which the country had struggled during the British regime and a Constitution was sought to be enacted in accordance with the genius of the Indian people.

It certainly represented an amalgam of schemes and ideas adopted from the Constitutions

of other countries. But the constant strain which runs throughout each and every article of

the Constitution is reflected in the Preamble which could and can be made sacrosanct. It

is not without significance that the Preamble was passed only after draft articles of the

Constitution had been adopted with such modifications as were approved by the Constituent Assembly. The preamble was, therefore, meant to embody in a very few and

well defined words the key to the understanding of the Constitution.

539. It would be instructive to advert to the various stages through which the

Preamble

passed before it was ultimately adopted by the Constituent Assembly. In the earlier draft of the Union Constitution the Preamble was a somewhat formal affair. The one drafted by

B.N. Rau said:

We, the People of India, seeking to promote the common good, do hereby, throughout chosen representatives, enact, adopt and give to ourselves this Constitution.

The Union Constitution Committee provisionally accepted the draft Preamble of B.N.

Rau and reproduced it in its report of July 4, 1947 without any change with the tacit

recognition, at that stage, that the Preamble would finally be based on the Objectives

Resolution.

540. On July 18, 1947, Pandit Nehru in a statement observed that the Preamble was

covered more or less by the Objectives Resolution which it was intended to incorporate in

the final Constitution. Three days later, while moving the report of the Union Constitution Committee, he suggested that it was not at that stage necessary to consider

the Preamble since the Assembly stood by the basic principles laid down in the Objectives Resolution and these could be incorporated in the Preamble later. The suggestion was accepted and further consideration of the Preamble was held over.

541. The Drafting Committee considered the Preamble at a number of its meetings in

February 1948. The Committee omitted that part of the Objectives Resolution which

declared that the territories of India would retain the status of autonomous units with

residuary powers. By this time the opinion had veered round for a strong centre with

residuary powers. The Drafting Committee felt that the Preamble should be restricted "to

defining the essential features of the new State and its basic socio-political objectives and

and that the other matters dealt with in the Resolution could be more appropriately provided in the substantial parts of the Constitution". Accordingly it drafted the

Preamble, which

substantially was in the present form.

542. Meanwhile important developments had taken place in regard to the Indian States.

With the completion of the process of merger and integration of the Indian States the

principle had been accepted (i) of sovereign powers being vested in the people, and (ii)

that their Constitutions should be framed by the Constituent Assembly and should form

integrated part of the new Constitution. On October 12, 1949, Sardar Patel declared in the

Assembly that the new Constitution was "not an alliance between democracies and dynasties, but a real union of the Indian people, built on the basic concept of the sovereignty of the people.

543. The draft preamble was considered by the Assembly on October 17, 1949. The object of putting the Preamble last, the President of Assembly explained, was to see that

it was in conformity with the Constitution as accepted. Various amendments were at this

stage suggested, but were rejected. One of such was the proposal to insert into it the

words "In the name of God". That was rejected on the ground that it was inconsistent

with the freedom of faith which was not only promised in the Preamble itself but was also

guaranteed as a fundamental right (Constituent Assembly Debates Vol. 10, pp. 432-442).

544. An amendment was moved in the Constituent Assembly to make it clear beyond all

doubt that sovereignty vested in the people. It was not accepted on the short ground that

"the Preamble as drafted could convey no other meaning than that the Constitution

emanated from the people and sovereignty to make this Constitution vested in them (The

Framing of India's Constitution by B. Shiva Rao, p. 131)

545. The history of the drafting and the ultimate adoption of the Preamble shows:

(1) that it did not "walk before the Constitution" as is said about the preamble to the United States Constitution;

(2) that it was adopted last as a part of the Constitution:

(3) that the principles embodied in it were taken mainly from the Objectives Resolution;

(4) the Drafting Committee felt, it should incorporate in it "the essential features of the "new State":

(5) that it embodied the fundamental concept of sovereignty being in the people.

546. In order to appreciate how the preamble will assist us in discovering the meaning of

the word "amendment" employed in Article 368 we may again notice the argument presented by the respondents that the amending body can alter, vary or repeal any

provision of the Constitution and enact it and apply that process to the entire Constitution

short of total repeal and abrogation. It is maintained on behalf of the Respondents that by

virtue of the amending power even the preamble can be varied, altered or repealed. Mr.

Palkhivala, however, relies a great deal on the preamble for substantiating the contention

that "amendment" does not have the widest possible meaning as claimed by the respondents and there are certain limitations to the exercise of the amending power and,

therefore, the expression "amendment" should be construed in the light of those

limitations. All the elements of the Constitutional structure, it is said, are to be found in

the preamble and the amending body cannot repeal or abrogate those essential elements

because if any one of them is taken away the edifice as erected must fall.

547. The learned Advocate General of Maharashtra, says that the preamble itself is

ambiguous and it can be of no assistance in that situation. It has further been contended

that the concepts recited in the preamble, e.g., human dignity, social and economic justice

are vague; different schools of thought hold different notions of their concepts. We are

wholly unable to accede to this contention. The preamble was finalised after a long

discussion and it was adopted last so that it may embody the fundamentals underlying the

structure of the Constitution It is true that on a concept such as social and economic

justice there may be different schools of thought but the Constitution makers knew what

they meant by those concepts and it was with a view to implement them that they enacted

Parts III (Fundamental Rights) and Part IV (Directive Principles of State Policy) - both

fundamental in character-on the one hand, basic freedoms to the individual and on the

other social security, justice and freedom from exploitation by laying down guiding

principles for future governments.

548. Our court has consistently looked to the preamble for guidance and given it a

transcendental position while interpreting the Constitution or other laws. It was so referred

in *Behram Khurshid Pesikaka* [1955] 1 S.C.R. 613 at p. 653 case. *Bhagwati J.*, in

Bhadeshwar Nath v. Commissioner of Income-tax [1959] Suppl. 1 S.C.R. 528 Rajasthan

when considering the question of waiver of a fundamental right referred to the preamble

and to the genesis of declaration of fundamental rights which could be traced to the report

of the Nehru Committee of 1928. He proceeded to say "the object sought to be achieved

was, as the preamble to the Constitution states...." In *Re Kerala Education Bill* 1957

[1959] S.C.R. 995 this Court referred to the preamble extensively and observed that the

fundamental rights were provided for "to implement and fortify the supreme purpose set forth in the preamble". The court also made use of the "inspiring and nobly expressed preamble to our Constitution" while expressing opinion about the legality of the various provisions of the Kerala Education Bill 1957. It is unnecessary to multiply citations from judgments of this Court in which the preamble has been treated almost as sacrosanct and has been relied on or referred to for the purpose of interpreting legislative provisions. In other countries also following the same system of jurisprudence the preamble has been referred to for finding out the Constitutional principles underlying a Constitution. In *Rex v. Hess* [1949] Dom. L.R. 199 at p. 208 it was said: I conclude further that the opening paragraph of the preamble to the B.N.A. Act 1867, which provided for a "Constitution similar in principle to that of the United Kingdom" thereby adopted the same Constitutional principles and hence Section 1025A is contrary to the Canadian Constitution and beyond the competence of Parliament or any provincial legislature to enact so long as our Constitution remains in its present form of a Constitutional democracy. In *John Switzman v. Freda Elbling & Attorney General of the Province of Quebec* [1957] Canada L.R. 285 at p. 326 (Supreme Court), Abbot J., relied on the observations of Duff C.J., in an earlier decision in *Re Alberta Statutes* [1938] S.C.R. 100 (Canada) which was affirmed in *Attorney General for Alberta v. Attorney General for Canada* [1939] A.C. 117—that view being that the preamble of the British North America Act showed plainly enough that the Constitution of the Dominion was to be similar in principle to that of the United Kingdom. The statute contemplated a Parliament working under the influence of public opinion and public discussion. In *McCawley v. The King* Lord Birkenhead [1920] A.C. 691 at p. 711 (Lord Chancellor) while examining the contention that the Constitution Act of 1867 (Queensland, Australia) enacted certain fundamental organic provisions of such a nature which rendered the Constitution stereotyped or controlled proceeded to observe at page 711: It may be premised that if a change so remarkable were contemplated one would naturally have expected that the legislature would have given some indication, in the very lengthy preamble of the Act, of this intention. It has been seen that it is impossible to point to any document or instrument giving to, or imposing upon the Constitution of Queensland this quality before the year 1867. Yet their Lordships discern nowhere in the preamble the least indication that it is intended for the first time to make provisions which are sacrosanct or which at least can only be modified by methods never previously required. 549. In *re. Berubari Union and Exchange of Enclaves* [1960] 3 S.C.R. 250 an argument had been raised that the preamble clearly postulated that the entire territory

of India was beyond the reach of Parliament and could not be affected either by ordinary legislation or even by Constitutional amendment. The Court characterized that argument as extreme

and laid down the following propositions:

1. A preamble to the Constitution serves as a key to open the minds of the makers, and shows the general purposes for which they made the several provisions in the Constitution;
 2. The preamble is not a part of our Constitution;
 3. It is not a source of the several powers conferred on government under the provisions of the Constitution;
 4. Such powers embrace those expressly granted in the body of the Constitution "and such as may be implied from those granted";
 5. What is true about the powers is equally true about the prohibitions and limitations;
 6. The preamble did not indicate the assumption that the first part of preamble postulates a very serious limitation on one of the very important attributes of sovereignty, viz., ceding territory as a result of the exercise of the sovereign power of the State of treaty-making and on the result of ceding a part of the territory.
550. On behalf of the respondents reliance has been placed on this case for the proposition that no limitation was read by virtue of the preamble. A careful reading of the judgment shows that what was rejected was the contention that the preamble was the source of power. Indeed, it was held that the preamble was not even a part of the Constitution and that one must seek power and its scope in the provisions of the Constitution. The premise for the conclusion was that a preamble is not the source of power since it is not a part of the Constitution. The learned Advocate General of

Maharashtra has himself disputed the conclusion in the aforesaid judgment that the preamble is not a part of the Constitution. It is established that it was adopted by the Constituent Assembly after the entire Constitution had been adopted.

551. Mr. Palkhivala has given an ingenious explanation as to why the preamble cannot be regarded as a part of our Constitution. He makes a distinction between the concept of the Constitution and the concept of the Constitution's statutes. The last words in the preamble "This Constitution is the Constitution which follows the preamble, "according to Mr. Palkhivala. It starts with Article 1 and ended originally with the Eighth Schedule and now ends with the Ninth Schedule after the First Amendment Act 1951. It is sought to be concluded from this that the way in which the preamble has been drafted, indicates that what follows or is annexed to the preamble is the Constitution of India. It is further argued that:

The Constitution statute of India consist of two parts-one, the preamble and the other the Constitution: The preamble is a part of the Constitution statute, but is not a part of the Constitution. It precedes it; The preamble came into force on Nov. 26, 1949 and not 26th January 1950 as contended on behalf of Respondent No. 1

552. There is a clear recital in the preamble that the people of India gave to themselves this Constitution on the 26th day of November 1949. Even if the preamble was actually adopted by the Constituent Assembly at a later date, no one can question the statement made in the Preamble that the Constitution came into force on the date mentioned therein. The preamble itself must be deemed by a legal fiction to have come into force with effect from 26th November 1949. Even if this is a plausible conclusion, it does not appear to be sufficient to support the observation in the Berubari case that the preamble was not a part of the Constitution. To our mind, it hardly makes any substantial difference whether the preamble is a part of the Constitution or not. The preamble serves several important purposes. Firstly, it indicates the source from which the Constitution comes viz. the people of India. Next, it contains the enacting clause which brings into force the Constitution. In the third place, it declares the great rights and freedoms which the people of India intended to secure to all citizens and the basic type of government and polity which was to be established. From all these, if any provision in the Constitution had to be interpreted and if the expressions used therein were ambiguous, the preamble would certainly furnish valuable guidance in the matter, particularly when the

question is of the correct ambit, scope and width of a power intended to be conferred by Article 368.

553. The stand taken up on behalf of the respondents that even the preamble can be varied, altered or repealed, is an extraordinary one. It may be true about ordinary statutes but it cannot possibly be sustained in the light of the historical background, the Objectives Resolution which formed the basis of the preamble and the fundamental position which the preamble occupies in our Constitution. It constitutes a landmark in India's history and sets out as a matter of historical fact what the people of India resolved

to do for moulding their future destiny. It is unthinkable that the Constitution makers ever conceived of a stage when it would be claimed that even the preamble could be abrogated or wiped out.

554. If the preamble contains the fundamentals of our Constitution, it has to be seen whether the word amendment in Article 368 should be so construed that by virtue of the amending power the Constitution can be made to suffer a complete loss of identity or the basic elements on which the Constitutional structure has been erected, can be eroded or taken away. While dealing with the preamble to the United States, Constitution it was observed by Story (Commentaries on the Constitution of the United States, 1833 edition, Volume I), that the preamble was not adopted as a mere formulary; but as a solemn promulgation of a fundamental fact, vital to the character and operations of the Government. Its true office is to expound the nature and extent and application of the powers actually conferred by the Constitution and not substantially to create them Story, para 462 at p. 445.

555. Now let us examine the effect of the declarations made and the statements contained in the preamble on interpretation of the word "amendment" employed in Article 368 of the Constitution. The first thing which the people of India resolved to do was to constitute their country into a Sovereign Democratic Republic. No one can suggest that these words and expressions are ambiguous in any manner. Their true import and connotation is so well known that no question of any ambiguity is involved. The question which

immediately arises is whether the words "amendment or amended" as employed in Article 368 can be so interpreted as to confer a power on the amending body to take away any of these three fundamental and basic characteristics of our polity. Can it be said or even suggested that the amending body can make institutions created by our Constitution undemocratic as opposed to democratic; or abolish the office of the President and, instead, have some other head of the State who would not fit into the conception of a "Republic" The width of the power claimed on behalf of the respondents has such large dimension that even the above part of the preamble can be wiped out from which it would follow that India can cease to be a Sovereign Democratic Republic and can have a polity denuded of sovereignty, democracy and Republican character.

556. No one has suggested-it would be almost unthinkable for anyone to suggest-that the amending body acting under Article 368 in our country will ever do any of the things mentioned above, namely change the Constitution in such a way that it ceases to be a Sovereign Democratic Republic. But while examining the width of the power, it is essential to see its limits, the maximum and the minimum; the entire ambit and magnitude of it and it is for that purpose alone that this aspect is being examined. While analysing the scope and width of the power claimed by virtue of a Constitutional provision, it is wholly immaterial whether there is a likelihood or not of such an eventuality arising.

557. Mr. Palkhivala cited example of one country after another in recent history where from a democratic Constitution the amending power was so utilized as to make that country wholly undemocratic resulting in the negation of democracy by establishment of rule by one party or a small oligarchy. We are not the least impressed by these instances and illustrations. In the matter of deciding the questions which are before us, we do not want to be drawn into the political arena which, we venture to think, is "out of bounds" for the judiciary and which tradition has been consistently followed by this Court. [See

Wanchoo J, as he then was in *Golak Nath* [1967] 2 S.C.R. 762 at p. 850].

558. Since the respondents themselves claim powers of such wide magnitude that the results which have been briefly mentioned can flow apart from others which shall presently notice, the consequences and effect of suggested construction have to be taken into account as has been frequently done by this Court. Where two constructions are possible the court must adopt that which will ensure smooth and harmonious working of the Constitution and eschew the other which will lead to absurdity or give rise to practical

inconvenience or make well-established provisions of existing law nugatory State of Punjab v. Ajaib Singh and Anr. [1953] S.C.R. 254 at page 264; Director of Customs, Baroda v. Dig Vijay Singhji Spinning & Weaving Mills Ltd. [1962] 1 S.C.R. p. 896. 559. In Don John Francis Douglas Liyange and Ors. v. The Queen [1967] (I) A.C. 259, Lord Pearson declined to read the words of Section 29(1) of the Ceylon Constitution as entitling the Parliament to pass legislation which usurped the judicial power of the judicature by passing an Act of Attainder against some persons or instructing a judge to bring in a verdict of guilty against someone who is being tried-if in law such usurpation would otherwise be contrary to the Constitution. 560. In Maxwell's Interpretation of Statutes (12th Edition), Chapter 5 deals with restrictive construction and the very first section contains discussion on the question whether the consequences of a particular construction being adopted can be considered and examples have been given from cases decided in England with reference to the consequences. According to American Jurisprudence, Vol. 50, 1962 Reprint at pp. 372, 373 there are cases in which consequences of a particular construction are in and of themselves, conclusive as to the correct solution of the question. 561. The learned Advocate General of Maharashtra has contended that the proper way of construing an amending provision is not to take into consideration any such speculation that the powers conferred by it, would be abused. It has also been said that any court deciding the validity of a law cannot take into consideration extreme hypothetical examples or assume that a responsible legislature would make extravagant use of the power The Bank of Toronto v. Lambe (1887) 12 A.C. 575 at pp. 586-587. 562. According to Mr. Palkhivala, the test of the true width of a power is not how probable it is that it may be exercised but what can possibly be done under it; that the abuse or misuse of power is entirely irrelevant; that the question of the extent of the power cannot be mixed up with the question of its exercise and that when the real question is as to the width of the power, expectation that it will never be used is as wholly irrelevant as an imminent danger of its use. The court does not decide what is the best what is the worst. It merely decides what can possibly be done under a power if the words conferring it are so construed as to have an unbounded and limitless width, as claimed on

behalf of the respondents.

563. It is difficult to accede to the submission on behalf of the respondents that while considering the consequences with reference to the width of an amending power contained in a Constitution any question of its abuse is involved. It is not for the courts

to enter into the wisdom or policy of a particular provision in a Constitution or a statute.

That is for the Constitution makers or for the parliament or the legislature.

But that the

real consequences can be taken into account while judging the width of the power is well

settled. The Court cannot ignore the consequences to which a particular construction can

lead while ascertaining the limits of the provisions granting the power.

According to the

learned Attorney General, the declaration in the preamble to our Constitution about the

resolve of the people of India to constitute it into a Sovereign, Democratic Republic is

only a declaration of an intention which was made in 1947 and it is open to the amending

body now under Article 368 to change the Sovereign Democratic Republic into some

other kind of polity. This by itself shows the consequence of accepting the construction

sought to be put on the material words in that article for finding out the ambit and width

of the power conferred by it.

564. The other part of the Preamble may next be examined. The Sovereign

Democratic

Republic has been constituted to secure to all the citizens the objectives set out. The

attainment of those objectives forms the fabric of and permeates the whole scheme of the

Constitution. While most cherished freedoms and rights have been guaranteed the government has been laid under a solemn duty to give effect to the Directive Principles.

Both Parts III and IV which embody them have to be balanced and harmonised-then alone the dignity of the individual can be achieved. It was to give effect to the main

objectives in the Preamble that Parts III and IV were enacted. The three main organs of

government legislative, executive and judiciary and the entire mechanics of their

functioning were fashioned in the light of the objectives in the Preamble, the nature of

polity mentioned therein and the grand vision of a united and free India in which every

individual high or low will partake of all that is capable of achievement. We must,

therefore, advert to the background in which Parts III and IV came to be enacted as they

essentially form a basic element of the Constitution without which its identity will

completely change.

565. It is not possible to go back at any length to the great struggle for

freedom from British Rule and the attainment of independence. The British executive's arbitrary acts, internments and deportations without trial and curbs on the liberty of the press and individuals are too well known to every student of Indian history to be specifically mentioned. This was before some essential rights based on British Common law and jurisprudence came to be embodied in various Parliamentary enactments. According to B.N. Rau Year Book of Human Rights 1947, human rights, with few exceptions, were not guaranteed by the Constitution (Government of India Act). Shiva Rao has in his valuable study Framing of India's Constitution (B. Shiva Rao) given the various stages beginning with 1895 Constitution of India Bill framed by the Indian National Congress which envisaged a Constitution guaranteeing a number of freedoms and rights. Two events at a later stage exercised a decisive influence on the Indian leaders. One was the inclusion of a list of fundamental rights in the Constitution of Irish Free State in 1921 and the other, the problem of minorities. Ibid p. 172. 566. The next steps were the report of the Nehru Committee in 1928, the reiteration of the resolve at the session of the Indian National Congress at its Karachi Session in March 1931 and omitting some details, the deliberations of the Sapru Committee appointed by the All India Parties Conference (1944-45). The British Cabinet Mission in 1946 recommended the setting up of an Advisory Committee for reporting inter alia on fundamental rights. Before reference is made to the Objectives Resolution adopted in January 22, 1947 it must be borne in mind that the post war period in Europe had witnessed a fundamental orientation in juristic thinking, particularly in West Germany, characterized by a farewell to positivism, under the influence of positivist legal thinking. During the pre-war period most of the German Constitutions did not provide for judicial review which was conspicuously absent from the Weimar Constitution even though Hugo Preuss, often called the Father of that Constitution, insisted on its inclusion. After World War II when the disastrous effects of the positivist doctrines came to be realized there was reaction in favour of making certain norms immune from amendment or abrogation. This was done in the Constitution of the Federal Republic of Germany. The atrocities committed during Second World War and the world wide agitation for human rights

ultimately embodied in the U.N. Declaration of Human Rights on, which a number of the provisions in Parts III and IV of our Constitution are fashioned must not be forgotten while considering these matters. Even in Great Britain, where the doctrine of the legal sovereignty of Parliament has prevailed since the days of Erskine, Blackstone, Austin and lastly Dicey, the new trend in judicial decisions is to hold that there can be at least procedural limitations (requirement of form and manner) on the legislative powers of the legislature. This follows from the decisions in *Moore v. The Attorney General for the Irish Free State* (1935) A.C. 484; *Attorney General for New South Wales v. Trethowan* (1932) A.C. 526. The Objective's Resolution declared, inter alia, the firm, and the solemn resolve to proclaim India as Independent Sovereign Republic and to draw up for her future governance a Constitution. Residuary powers were to vest in the States. All power and authority of the Sovereign Independent India, its constituent parts and organs of government, were derived from the people and it was stated:

(5) wherein shall be guaranteed and secured to all the people of India, justice, social, economic and political; equality of status, of opportunity, and before the law; freedom of thought, expression, belief, faith, worship, vocation, association and action, subject to law and public morality; and

(6) wherein adequate safeguards shall be provided for minorities, backward and tribal areas, and depressed and other backward classes; and

(7) whereby shall be maintained the integrity of the territory of the Republic and its sovereign rights on land, sea, and air according to justice and the law of civilised nations, and

567. It may be recalled that as regards the minorities the Cabinet Mission had recognised in their report to the British Cabinet on May 6, 1946 only three main communities; general, muslims and sikhs. General community included all those who were nonmuslims or non-sikhs. The Mission had recommended an Advisory Committee to be set up by the Constituent Assembly which was to frame the rights of citizens, minorities, tribals and excluded areas. The Cabinet Mission statement had actually provided for the cession of sovereignty to the Indian people subject only to two matters which were; (1) willingness to conclude a treaty with His Majesty's Government to cover matters arising out of transfer of power and (2) adequate provisions for the protection of the minorities. Pursuant to the above and paras 5 and 6 of the Objectives Resolution the Constituent Assembly set up an Advisory Committee on January 24, 1947. The Committee was to consist of representatives of muslims, the depressed classes or the scheduled castes, the sikhs, christians, parsis, anglo-Indians, tribals and excluded areas besides the Hindus

Constituent Assembly Debates Vol. 2 pages 330-349. As a historical fact it is safe to say that at a meeting held on May 11, 1949 a resolution for the abolition of all reservations for minorities other than the scheduled castes found whole hearted support from an overwhelming majority of the members of the Advisory Committee. So far as the scheduled castes were concerned it was felt that their peculiar position would necessitate special reservation for them for a period of ten years. It would not be wrong to say that the separate representation of minorities which had been the feature of the previous Constitutions and which had witnessed so much of communal tension and strife was given up in favour of joint electorates in consideration of the guarantee of fundamental rights and minorities rights which it was decided to incorporate into the new Constitution. The Objectives Resolution can be taken into account as a historical fact which moulded its nature and character. Since the language of the Preamble was taken from the resolution itself the declaration in the Preamble that India would be a Sovereign, Democratic Republic which would secure to all its citizens justice, liberty and equality was implemented in Parts III and IV and other provisions of the Constitution. These formed not only the essential features of the Constitution but also the fundamental conditions upon and the basis on which the various groups and interests adopted the Constitution as the Preamble hoped to create one unified integrated community. The decision of the Privy Council in the Bribery Commissioner v. Pedrick Ranasinghe [1965] A.C. 172 at pp. 193-194 will require a more detailed discussion in view of the elaborate arguments addressed on both sides based on it. But for the present all that need be pointed out is that the above language is borrowed mainly from the judgment of Lord Pearce who, after setting out Section 29 of the Ceylon Constitutional Order which gave Parliament the power to make laws for the peace, order and good government of the island, said with regard to Clause (2) according to which no law could prohibit or restrict the free exercise of any religion, There follow (b), (c) and (d), which set out further entrenched religious and racial matters, which shall not be the subject of legislation. They represent the solemn balance of rights between the citizens of Ceylon, the fundamental conditions on which inter se they accepted the Constitution;

and these are therefore unalterable under the Constitution. Another opposite observation in this connection was made in *In re the Regulation and Control of Aeronautics in Canada* [1932] A.C. 54 at p. 70 while interpreting the British North America Act 1867. It was said that inasmuch as the Act embodied a compromise under which the original provinces agreed to federate, it is important to keep in mind that the preservation of the rights of minorities was a condition on which such minorities entered into the federation and the foundation upon which the whole structure was subsequently erected.

568. Our Constitution is federal in character and not unitary. In a federal structure the existence of both the Union and the States is indispensable and so is the power of judicial review. According to Dicey: *Law of the Constitution* by A.V. Dicey p. 144.

A federal State derives its existence from the Constitution, just as a corporation derives its existence from the grant by which it is created. Hence every power, executive, legislative or judicial, whether it belong to the nation or to the individual States, is subordinate to and controlled by the Constitution. *Law of the Constitution* by A.V. Dicey p. 144. The object for which a federal State is formed involves a division of authority between

the national government and the separate States. *Ibid* p. 151. Federalism can flourish only among communities imbued with a legal spirit and trained to reverence the law. Swiss federalism, according to Dicey, "fails, just where one would expect it to fail, in

maintaining that complete authority of the courts which is necessary to the perfect federal system". *Ibid* p. 180. The learned Advocate General of Maharashtra while relying a great deal on Dicey's well known work in support of his other points, has submitted that

although he was one of the greatest writers on the law of English Constitution, his book was concerned with two or three guiding principles which pervade the modern Constitution of England. The discussion of federal government in his book was a subordinate part and the discussion was designed to bring out sharply the two or three

guiding principles of the English Constitution by contrast with the different principles underlying the Constitution of the federal government. Reliance has been placed on

Professor Wheare's statement in his book *Federal Government*, 4th Edn. (1963) that the

Swiss Courts are required by the Constitution to treat all laws passed by the federal assembly as valid though they may declare Cantonal laws to be void and that does not

constitute such a departure from the federal principle that the Swiss people cannot be regarded as having a federal Constitution and a federal government. Switzerland is

probably the only country having a federal Constitution where full-fledged right of judicial review is not provided. We are unable to understand how that can have any relevancy in the presence of judicial review having been made an integral part of our Constitution.

569. It is pointed out on behalf of the petitioners that the scheme of Article 368 itself contains intrinsic pieces of evidence to give a limited meaning to the word "amendment".

Firstly, Article 368 refers to "an amendment of this Constitution", and the result of the amendment is to be that "the Constitution shall stand amended". As the Constitution has

an identity of its own, an amendment, made under a power howsoever widely worded cannot be such as would render the Constitution to lose its character and nature. In other words, an amendment cannot be such as would denude the Constitution of its identity.

The amending power is conferred on the two Houses of Parliament, whose identity is

clearly established by the provisions in the Constitution. It must be the Parliament of the

Sovereign Democratic Republic. It is not any Parliament which has the amending power,

but only that Parliament which has been created by the Constitution. In other words, it

must continue to be the Parliament of a sovereign and democratic republic. The institution of States must continue to exist in order that they may continue to be

associated with the amending power in the cases falling under the proviso. If the

respondents are right, the proviso can be completely deleted since Article 368 itself can be

amended. This would be wholly contrary to the scheme of Article 368 because two agencies are provided for amending the provisions covered by the proviso. One agency

cannot destroy the other by the very exercise of the amending power. The effect of

limitless amending power in relation to amendment of Article 368 cannot be conducive to

the survival of the Constitution because the amending power can itself be taken away and

the Constitution can be made literally unamendable or virtually unamendable by providing for an impossible majority.

570. While examining the above contentions, it is necessary to consider the claim of the

respondents that the amending body under Article 368 has the full constituent power. It

has been suggested that on every occasion the procedure is followed as laid down in

Article 368 by the two Houses of Parliament and the assent of the President is given there

is the reproduction of the functions of a Constituent Assembly. In other words, the

Parliament acts in the same capacity as a Constituent Assembly when exercising the power of amendment under the said Article. This argument does not take stock of the admission made on behalf of the respondents that the entire Constitution cannot be repealed or abrogated by the amending body. Indisputably, a Constituent Assembly specially convened for the purpose would have the power to completely revise, repeal or abrogate the Constitution. This shows that the amending body under Article 368 cannot have the same powers as a Constituent Assembly. Even assuming that there is reference on the nature of power between enacting a law and making an amendment, both the powers are derived from the Constitution. The amending body has been created by the Constitution itself. It can only exercise those powers with which it has been invested. And if that power has limits, it can be exercised only within those limits. 571. The respondents have taken up the position that even if the power was limited to some extent under Article 368, as it originally stood, that power could be enlarged by virtue of Clause (e) of the proviso. It must be noted that the power of amendment lies in the first part of Article 368. What Clause (e) in the proviso does is to provide that if Article 368 is amended, such an amendment requires ratification by the States, besides the larger majority provided in the main part. If the amending power under Article 368 has certain limits and not unlimited Article 368 cannot be so amended as to remove these limits nor can it be amended so as to take away the voice of the states in the amending process. If the Constitution makers were inclined to confer the full power of a Constituent Assembly, it could have been easily provided in suitable terms. If, however, the original power was limited to some extent, it could not be enlarged by the body possessing the limited power. That being so, even where an amending power is expressed in wide terms, it has to be exercised within the framework of the Constitution. It cannot abrogate the Constitution or frame a new Constitution or alter or change the essential elements of the Constitutional structure. It cannot be overlooked that the basic theory of our Constitution is that "Pouvoir Constituent", is vested in the people and was exercised, for and on other behalf by the Constituent Assembly for the purpose of framing the Constitution. 572. To say, as has been said on behalf of the respondents, that there are only two categories of Constitutions, rigid or controlled and flexible or uncontrolled and that the difference between them lies only in the procedure provided for amendment is an oversimplification. In certain Constitutions there can be procedural and or

substantive limitations on the amending power. The procedural limitations could be by way of a prescribed form and manner without the satisfaction of which no amendment can validly result. The form and manner may take different forms such as a higher majority either in the houses of the concerned legislature sitting jointly or separately or by way of a convention, referendum etc. Besides these limitations, there can be limitations in the content and scope of the power. To illustrate, although the power to amend under Article 5 of the U.S. Constitution resides ultimately in the people, it can be exercised in either of the modes as might be prescribed by the Congress viz. through ratification by the State legislatures or through conventions, specially convened for the purpose. The equal suffrage in the Senate granted to each of the States, cannot be altered without the consent of the State. The true distinction between a controlled and an uncontrolled Constitution lies not merely in the difference in the procedure of amendment, but in the fact that in controlled Constitutions the Constitution has a higher status by whose touch-stone the validity of a law made by the legislature and the organ set up by it is subjected to the process of judicial review. Where there is a written Constitution which adopts the preamble of sovereignty in the people there is firstly no question of the law-making body being a sovereign body for that body possesses only those powers which are conferred on it. Secondly, however representative it may be, it cannot be equated with the people. This is especially so where the Constitution contains a Bill of Rights for such a Bill imposes restraints on that body, i.e. it negates the equation of that body with the people.

573. Before concluding the topic on the interpretation or construction of the words "amendment of this Constitution" in Article 368, it is necessary to deal with some American decisions relating to Article 5 of the American Constitution on which a great deal of reliance was placed on behalf of the respondents for establishing that the word "amendment" has a precise and definite meaning which is of the widest amplitude. The first relates to the 18th amendment, known as the National Prohibition cases in the State of Rhode Island v. A. Mitchel Palmer 64 L. Ed. 946. In that case and other cases heard with it, elaborate arguments were addressed involving the validity of the 18th amendment and of certain features of the National Prohibition Law, known as Volstead Act, which was adopted to enforce the amendment. The relief sought in each case was an injunction against the execution of that Act. The Court merely stated its conclusions and did not

give any reasons-a matter which was profoundly regretted by Chief Justice White.
From,

the conclusions stated and the opinion of the Chief Justice it appears that a good deal of controversy centered on Section 2 of the amendment which read "Congress and the several States shall have concurrent power to enforce this Article by appropriate legislation". In the dissenting opinion of Mr. Justice Mckenna it was said that the Constitutional validity of the 18th amendment had also been attacked and although he dissented in certain other matters he agreed that the 18th amendment was a part of the Constitution of the United States. The learned Advocate General of Maharashtra has placed a great deal of reliance on this decision. His argument is that though the judgment in the Rhode Island case gives no reasons, yet it is permissible to look at the elaborate briefs filed by the counsel in several cases and their oral arguments in order to understand what was argued and what was decided. One of the main contentions raised was that the 18th amendment was not in fact an amendment, for an amendment is an alteration or improvement of that which is already there in the Constitution and that term is not intended to include any addition of a new grant of power. The judgment shows that this argument was not regarded even worth consideration and was rejected outright. Now it is significant that most of the justices including the Chief Justice who delivered judgments dealt only with the questions which had nothing to do with the meaning of the word "amendment". It is not possible to derive much assistance from this judgment. 574. In J.J. Dhillon v. R.W. Gloss 65 L. Ed. 994 it was observed that an examination of Article 5 discloses that it was intended to invest Congress with a wide range of power in proposing amendments. However, the following observations are noteworthy and have been relied upon in support of the case of the petitioners that according to the United States Constitution it is the people who get involved in the matter of amendments. "A further mode of proposal-as yet never invoked-is provided, which is, that on application of two-third of the States, Congress shall call a convention for the purpose. When proposed in either mode, amendments, to be effective must be ratified by the legislatures or by convention in three fourths of the States as the one or the other mode of ratification may be proposed by the Congress". Thus the people of the United States, by whom the Constitution was ordained and established, have made it a condition for amending that instrument that the amendment be submitted to representative assemblies in the several

States and be ratified in three-fourths of them. The plain meaning of this is (a) that all amendments must have the sanction of the people of the United States, the original fountain of power, acting through representative assemblies, and (b) that ratification by these assemblies in three-fourths of the States shall be taken as a decisive expression of the people's will and be binding on all.

575. Although all the amendments were made by the method of ratification by the requisite number of State legislatures, the convention mode was adopted when the 18th

amendment was repealed by the 21st amendment Another case, *United States of America*

v. William H. Sprague and William J. Howey 75 L. Ed. 640, 644, will be discussed more

fully while considering the question of implied limitations. All that it establishes for the

purpose of meaning of amendment is that one must look to the plain language of the

Article conferring the power of amendment and not travel outside it. Article 5, it was

said, contained procedural provisions for Constitutional change by amendment without

any present limitation whatsoever except that no State might be deprived of equal

representation in the Senate without its consent. Mr. Justice Douglas while delivering the

opinion of the court in *Howard Joseph Whitehill v. Wilson Elkins* 19 L. Ed. 2d. 228

stated in categorical terms that the Constitution prescribes the method of "alteration" by

amending process in Article 5 and, while the procedure for amending it is restricted there

is no restraint on the kind of amendment that may be offered. Thus the main submission

on behalf of the counsel for the respondents has been that Article 5 of the United States

Constitution served as model for Article 368 of our Constitution.

576. Article V provides different modes of amendment These may be analysed as follows:

577. The proposals can be made-,

(1) By two thirds of both Houses of the Congress or

(2) By a Convention for proposing amendments to be called by the Congress on the application of legislatures of two-thirds of the States.

578. The ratification of the proposals has to be made by

(1) Legislatures of three fourths of the States or

(2) by Conventions in three fourths thereof (as one of the other mode of ratification may be proposed by the Congress)

In *Hawke v. Smith* 64 L. Ed. 871, the question raised was whether there was any conflict

between Article 5 of the U.S. Constitution which gave power to the Congress to provide whether the ratification should be by State Legislatures or Conventions and the Constitution of Ohio as amended. The Supreme Court held that Article 5 was grant of authority by the people to Congress. The determination of the method of ratification was the exercise of the national power specifically granted by the Constitution and that power was limited to two methods, by the State Legislatures or by Conventions. The method of ratification, however, was left to the choice of Congress. The language of the Article was plain and admitted of no doubt in its interpretation. In that case the Constitution of Ohio even after amendment which provided for referendum vested the legislative power primarily in a General Assembly consisting of a Senate and a House of Representatives. Though the law making power of a State was derived from the people the power to ratify a proposed amendment to the Federal Constitution had its source in that Constitution. The act of ratification by the State derived its authority from the federal Constitution. Therefore, in order to find out the authority which had the power to ratify, it was Article 5, to which one had to turn and not to the State Constitution. The choice of means of ratification was wisely withheld from conflicting action in the several States. 579. On behalf of the respondents it is claimed that these decisions establish that the power of amendment conferred by Article 5 was of the widest amplitude. It could be exercised through the representatives of the people, both in the Congress and the State Legislatures. In the case of Article 368 also Parliament consists of representatives of the people and the same analogy can be applied that it is a grant of authority by the people to the Parliament. This argument loses sight of the fact that under the American theory of government, power is inherent in the people including the right to alter and amend the organic instrument of government. Indeed, practically all the State Constitutions associate the people with the amending process. The whole basis of the decisions of the Supreme Court of the United States and of some of the State Supreme Courts is that it is the people who amend the Constitution and it is within their power to make the federal Constitution or unmake it. The reason is quite obvious. So far as Article 5 of the American Constitution is concerned, out of the alternative methods provided for amendment, there is only one in which the people cannot get directly associated, whereas in the others they are associated with the amending process, e.g., proposal of amendment by two-thirds of

both Houses of Congress and its ratification by conventions in three-fourths of the States
or a proposal of amendment by a convention called on the application of two-thirds of the
State Legislatures and its ratification by either convention in three-fourths of the States
or

by the Legislature of the same number of States.

580. The meaning of the words "amendment of this Constitution" as used in Article 368

must be such which accords with the true intention of the Constitution makers as ascertainable from the historical background, the Preamble, the entire scheme of the

Constitution, its structure and framework and the intrinsic evidence in various Articles

including Article 368. It is neither possible to give it a narrow meaning nor can such a

wide meaning be given which can enable the amending body to change substantially or

entirely the structure and identity of the Constitution. Even the concession of the learned

Attorney General and the Advocate General of Maharashtra that the whole Constitution

cannot be abrogated or repealed and a new one substituted supports the conclusion that

the widest possible meaning cannot be given to it.

581. Coming to the question of what has been called "inherent and implied limitations" to

the amending power in Article 368 of our Constitution. Mr. Palkhivala has maintained

that inherent limitations are those which inhere in any authority from its very nature,

character and composition whereas implied limitations are those which are not expressed

but are implicit in the scheme of the Constitution conferring the power. He maintains that

the "rule is established beyond cavil that in construing the Constitution of the United

States, what is implied is as much a part of the instrument as what is expressed",

American Jurisprudence (2d), Vol. 16, p. 251 Although the courts have rejected in

various cases a plea that a particular inherent or implied limitation should be put upon

some specific Constitutional power, no court, says Mr. Palkhivala, has ever rejected the

principle that such limitations which are fairly and properly deducible from the scheme of

the Constitution should be read as restrictions upon a power expressed in general terms.

Several decisions of our court, of the Privy Council, Irish courts, Canadian and Australian

courts have been cited in support of the contention advanced by him. The approach to this

question has essentially to be to look at our own decisions first. They fall in two

categories. In one category are those cases where limitations have been spelt out of

Constitutional provisions; the second category consists of such decisions as have laid

down that there is an implied limitation on legislative power.

582. Taking up the cases of the first category, before 1955, Article 13(2) was read as

containing an implied limitation that the State could acquire property only for a public purpose. (The Fourth Amendment expressly enacted this limitation in 1955). It was observed in *Chiranjit Lal Chowdhuri v. The Union of India and Ors.* [1950] S.C.R. 869

at p. 902 that one limitation imposed upon acquisition or taking possession of private property which is implied in the clause is that such taking must be for a public purpose.

Mahajan J., (later Chief Justice) said in *the State of Bihar v. Maharajadhiraja Sir*

Kameshwar Singh of Darbhanga and Ors. [1952] S.C.R. 889 at p. 934 that the existence

of a public purpose is undoubtedly an implied condition of the exercise of compulsory

power of acquisition by the State. The power conferred by Articles 3 and 4 of the

Constitution to form a new State and amend the Constitution for that purpose has been

stated to contain the implied limitation that the new State must conform to the democratic

pattern envisaged by the Constitution and the power which Parliament can exercise is not

the power to override the Constitution *Mangal Singh and Anr. v. Union of India* [1967] 2

S.C.R. 109 at p. 112 scheme. It may be mentioned that so far as Article 368 is concerned

there seems to have been a good deal of debate in *Golak Nath's* case on the question

whether there were any inherent or implied limitations. Dealing with the argument that in

exercise of the power of amendment Parliament could not destroy the structure of the

Constitution but it could only modify the provisions thereof within the framework of its

original instrument for its better effectuation, *Subba Rao C.J.* observed that there was no

necessity to express any opinion on this all important question owing to the view which

was being taken with regard to the meaning of the word "law" in Article 13(2). But it was

recognised that the argument had considerable force. *Wanchoo J.* (as he then was) considered the question of implied limitations at some length but felt that if any implied

limitation that basic features of the Constitution cannot be changed or altered, were to be

put on the power of amendment, the result would be that every amendment made in the

Constitution would involve legal wrangle. On the clear words of Article 368 it was not

possible to infer any implied limitation on the power of amendment *Hidayatullah J.*, (later

Chief Justice) discussed the question of implied limitations and referred to the state of

writings on the subject. He expressed no opinion on the matter because he felt that in our

Constitution Article 13(2) took in even constitutional amendments. *Bachawat J.*,

disposed of the matter by saying that the argument overlooked the dynamic character of the Constitution. Ramaswami J., clearly negated the argument based on implied limitations on the ground that if the amending power is an adjunct of sovereignty it does not admit of any limitation.

583. The cases which fall in the second category are decidedly numerous. It has been consistently laid down that there is an implied limitation on the legislative power; the legislature cannot delegate the essentials of the legislative function. Mukherjea J. (who later became Chief Justice) in *Re. Delhi Laws Act 1912* case (1951) S.C.R. 747 at pp. 984-985 stated in clear language that the right of delegation may be implied in the exercise of legislative power only to the extent that it is necessary to make the exercise of the power effective and complete. The same implied limitation on the legislature, in the field of delegation, has been invoked in *Raj Narain Singh v. Patna Administration* [1955] 2 S.C.R. 290; *Hari Shankar Bagla v. State of Madhya Pradesh* [1955] 1 S.C.R. 380; *Vasantlal Sanjanwala v. State of Bombay* [1961] 1 S.C.R. 341; *The Municipal Corporation of Delhi v. Birla Cotton Mills* [1968] 3 S.C.R. 251 and *Grewal D.S. v. State of Punjabi* [1959] Supp. 1 S.C.R. 792. Implied limitations have also been placed upon the legislature which invalidates legislation usurping the judicial power : See for instance *Shri Prithvi Cotton Mills Ltd. v. Broach Borough Municipality and Ors.* (1970) 1 S.C.R. 388 at pp. 392-393 and *Municipal Corporation of the City of Ahmedabad Etc. v. New Shorock Spg. and Wvg. Co. Ltd. etc.* (1971) 1 S.C.R. 288 at pp. 294-297.

584. Before we go to cases decided by the courts in other countries it may be useful to refer to some of the Constitutional provisions which are illustrative of the concept of implications that can be raised from the language and context thereof. The first provision in point is Article 368 itself. It has been seen at the stage of previous discussion that the power to amend is to be found in that Article only by implication as there is no express conferment of that power therein. The learned Solicitor General made a concession that various Articles are included by implication in the clauses of the provision by reason of the necessity for giving effect to the express power contained therein, e.g., Articles 52 and 53 must be so read as to impliedly include the power to amend Articles 54 and 55 which are not expressly mentioned in Clause (a) of the proviso. It has been implied that the President has been made a formal or a Constitutional head of the executive and the real executive power vests in the council of ministers and the Cabinet R.S. Ram Jawaya Kapur and Ors. v. The State of Punjab [1955] 2 S.C.R. 225. Article 53 declares

that the

MINORITY VIEW â ” A.N. RAY J. (Excerpt)

A.N. Ray, J.

788. The validity of the Constitution 24th, 25th and 29th Amendment Acts is challenged.

The Constitution 24th Amendment Act amended Article 368. Article 368 in the unamended form speaks of "Amendment of this Constitution" and how the Constitution

shall stand amended. The Constitution 24th Amendment Act enacts that Parliament may

in exercise of its constituent power amend by way of addition, variation or repeal any

provision of this Constitution in accordance with the procedure laid down in that Article.

The other part of the amendment is that nothing in Article 13 shall apply to any amendment under Article 368. The Constitution 25th Amendment Act has amended Article 31(2) and also Article 31(2A). The effect of these two amendments with regard to

Articles 31(2) and 31 (2A) is two-fold. First, no property shall be compulsorily acquired

or requisitioned save for a public purpose and save by authority of law which provides for

an amount which may be fixed by law or which may be determined in accordance with

such principles. Secondly, nothing in Article 19(1)(f) shall affect any law as is referred t

o

in Article 31(2). The second part of the Constitution 25th Amendment Act is introduction

of Article 31C which enacts that notwithstanding anything contained in Article 13 no law

giving effect to the policy of the State towards securing principles prescribed in Clauses

(b) and (c) of Article 39 shall be deemed to be void on the ground that it is inconsistent

with or takes away or abridges any of the rights conferred by Articles 14, 19 and 31; and

no law containing a declaration that it is for giving effect to such policy shall be called

in

question in any court on the ground that it does not give effect to such policy. By the

Constitution 29th Amendment Act the Kerala Land Reforms Amendment Act 1969 and the Kerala Land Reforms Amendment Act 1971 have been introduced into the Ninth Schedule of the Constitution.

789. The principal question which falls for determination is whether the power to amend

is under any express limitation of Article 13(2). Another question is whether there are

implied and inherent limitation on the power of amendment. Can there be any implied or

inherent limitation in the face of any express power of amendment without any exception? Question have been raised that essential features of the Constitution cannot be

amended. Does the Constitution admit of distinction between essential and non-essential

features ? Who is to determine what the essential features are? Who is the authority to pronounce as to what features are essential? The preeminent question is whether the power of amendment is to be curtailed or restricted, though the Constitution does not contain any exception to the power of amendment. The people gave the Constitution to the people. The people gave the power of amendment to Parliament. Democracy proceeds on the faith and capacity of the people to elect their representatives and faith in the representatives to represent the people. Throughout the history of man-kind if any motive power has been more potent than another it is that of faith in themselves. The ideal of faith in ourself is of the greatest help to us. Grote the historian of Greece said that the diffusion of Constitutional morality, not merely among the majority of any community but throughout the whole, is the indispensable condition of a government at once free and peaceful. By Constitutional morality Grote meant a paramount reverence for the forms of the Constitution, with a perfect confidence in the bosom of every citizen amidst the bitterness of party contest that the forms of the Constitution will not be less sacred in the eyes of opponents than in his own. The question is "He that planted the car, shall he nor hear? or he that made the eye, shall he no see".

790. The real question is whether there is any power to amend the Constitution and if so whether there is any limitation on the power. The answer to this question depends on these considerations. First, what is the correct ratio and effect of the decision in I.C. Golak Nath and Ors. v. State of Punjab and Anr. (1967) 2 S.C.R. 762. Second, should that ratio be upheld. Third, is there any limitation on the power to amend the Constitution. Fourth, was the 24th Amendment validly enacted. If it was, is there any inherent and implied limitation on that power under Article 368 as amended.

791. The scope and power under Article 368 as it stood prior to the Constitution (24th) Amendment Act to amend the Constitution falls for consideration.

792. Two principal questions arise. First, is the Constitution as well as an amendment to the Constitution law within the meaning of Article 13(2). Second, is there any implied and inherent limitation on the power of amendment apart from Article 13(2).

793. Mr. Palkhivala contends that the unamended Article 368 was subject to Article 13(2). It is said that amendment of the Constitution is law, and, therefore, any law which contravenes fundamental rights is void. It is also said that Article 368 does not prevail over or override Article 13. The four bars under Article 13 are said to be

these. The bar is imposed against the State, that is to say the totality of all the forces of the State. Second, all categories of law are covered by the bar, whether they are Constitutional amendments or bye-laws or executive Orders and Notifications. Third, all laws in force under Article 372 and all laws to be brought into force at any future date are brought within the scope of this bar. Fourth, the effect of the bar is to render the law void.

794. Mr. Palkhivala said that the preamble makes it clear that the object of the Constitution is to secure basic human freedom, and this guarantee will be meaningless if the Legislature against whom the guarantee is to operate is at liberty to abrogate the guarantees. It is said that law is comprehensive enough to include both ordinary law and Constitutional law. The various forms of oath in the Third Schedule of the Constitution refer to "Constitution as by law established". It is, therefore, submitted by the petitioner that the Constitution itself was originally established by law and every amendment has likewise to be established by law in order to take effect. It is emphasised that the Constitutional amendment is a law, and, therefore, the word "law" in Article 13(2) includes Constitutional amendments.

795. The Attorney General and Mr. Seervai said that the Constitution is the supreme higher law. An amendment to the Constitution is in exercise of constituent power. The amending power is not a legislative power. Law in Article 13(2) embodies the doctrine of ultra vires to render void any law enacted under the Constitution.

796. This Court in *Shankari Prasad Singh Deo v. Union of India and State of Bihar* (1952) S.C.R. 89 and *Sajjan Singh v. State of Rajasthan* (1965) 1 S.C.R. 933 examined the power to amend the Constitution.

797. In *Shankari Prasad* case the Constitution First Amendment Act was challenged. The principal contention was that the First Amendment in so far as it purported to take away or abridge the rights conferred by Part III of the Constitution fell within the prohibition of Article 13(2) of the Constitution.

798. The unanimous view of this Court in *Shankari Prasad* case was that although law must ordinarily include Constitutional law there is a clear demarcation between ordinary

law which is made in exercise of legislative power and Constitutional law which is made in exercise of constituent power. In the absence of a clear indication to the contrary it is difficult to hold that the framers of the Constitution intended to make the fundamental rights immune of Constitutional amendment. The terms of Article 368 are general to empower Parliament to amend the Constitution without any exception. Article 13(2) construed in the context of Article 13 means that law in Article 13(2) would be relateable to exercise of ordinary legislative power and not amendment to the Constitution. 799. The Constitution Fourth Amendment Act came into existence on 5 October, 1963. The Constitution Seventeenth Amendment Act came into force on 20 June, 1964. By the Seventeenth Amendment Act Article 31A Clause (1) was amended by inserting one more proviso. A fresh Sub-clause (a) was substituted for original Sub-clause (a) of Clause (2) of Article 31 retrospectively. 44 Acts were added in the Ninth Schedule. The validity of the Seventeenth Amendment was challenged before this Court in Sajjan Singh case. 800. The main contention in Sajjan Singh case was that the power prescribed by Article 226 was likely to be affected by the Seventeenth Amendment, and, therefore, it was necessary that the special procedure laid down in the proviso to Article 368 should have been followed. The Seventeenth Amendment Act was said to be invalid because that procedure was not followed. 801. The majority view of this Court in Sajjan Singh case was that Article 368 plainly and unambiguously meant amendment of all the provisions of the Constitution. The word "law" in Article 13(2) was held not to take in the Constitution Amendment Acts passed under Article 368. It was also said that fundamental rights in Article 19 could be regulated as specified in Clauses (2) to (6) and, therefore, it could not be said to have been assumed by the Constitution makers that fundamental rights were static and incapable of expansion. It was said that the concept of public interest and other important considerations which are the basis of Clauses (2) to (6) in Article 19 "may change and may even expand". The majority view said that "The Constitution makers knew that Parliament could be competent to make amendments in those rights (meaning thereby fundamental rights) so as to meet the challenge of the problem which may arise in the course of socio economic progress and the development of the country". 802. The minority view in Sajjan Singh case doubted the correctness of the unanimous view in Shankari Prasad case. The doubt was on a question as to whether fundamental rights could be abridged by exercise of power under Article 368. The minority

view in

Sajjan Singh case was that the rights of society are made paramount and are placed above

those of the individual. But the minority view was also that though fundamental rights

could be restricted under Clause (2) to (6) of Article 19 there could be no "removal or

debilitation" of such rights.

803. In Golak Nath case the Punjab Security of Land Tenures Act, 1953 was challenged

as violative of fundamental rights and as not being protected by the Constitution First

Amendment Act, 1951, the Constitution Fourth Amendment Act, 1955 and the Constitution Seventeenth Amendment Act, 1964. The validity of the Mysore Reforms Act, 1962 as amended by Act 14 of 1965 was also challenged on the same grounds. The

Punjab Act and the Mysore Act were included in the Ninth Schedule. It was common case that if the Seventeenth Amendment Act adding the Punjab Act and the Mysore Act

in the Ninth Schedule was valid the two Acts could not be impugned on any ground.

804. The majority decision of this Court in Golak Nath case was that an amendment of

the Constitution was law within the meaning of Article 13(2). There were two reasonings

in the majority view arriving at the same conclusion. The majority view where Subba

Rao, C.J., spoke was as follows: The power to amend the Constitution is derived from

Articles 245, 246 and 248 of the Constitution and not from Article 368. Article 368 deals

only with procedure. Amendment is a legislative process. Amendment is law within the

meaning of Article 13. Therefore, if an amendment takes away or abridges rights conferred by Part III of the Constitution it is void. The Constitution First Amendment

Act, the Constitution Fourth Amendment Act and the Constitution Seventeenth Amendment Act abridged the scope of fundamental rights. On the basis of earlier decisions of this Court the Constitution Amendment Acts were declared to be valid. On

the application of the doctrine of prospective over-ruling the amendments will continue to

be valid. Parliament will have no power from the date of this decision (meaning thereby

the decision in Golak Nath case) to amend any of the provisions of Part III of the

Constitution so as to take away or abridge the fundamental rights. The Constitution

Seventeenth Amendment Act holds the field. Therefore, the Punjab Act and the Mysore

Act cannot be questioned.

805. The concurring majority view of Hidayatullah, J. was this. The fundamental rights

are outside the amendatory process if the amendment seeks to abridge or take away any

of the rights. The First, the Fourth and the Seventh Amendment Acts being Part of the Constitution by acquiescence for a long time cannot be challenged. These Amendment Acts contain authority for the Seventeenth Amendment Act. Any further inroad into fundamental rights as they exist on the date of the decision will be illegal and unconstitutional unless it complies with Part III in general and Article 13(2) in particular.

The constituent body will have to be Convened for abridging or taking away fundamental rights. The Punjab Act and the Mysore Act are valid not because they are included in the Ninth Schedule of the Constitution but because they are protected by Article 31A and the assent of the President.

806. The two views forming the majority arrived at the same conclusion that an amendment of the Constitution being law within the meaning of Article 13(2) would be unconstitutional if such an amendment abridged any fundamental right. The leading majority view did not express any final opinion as to whether fundamental rights could be abridged by Parliament exercising its residuary power and calling a Constituent Assembly "for making a new Constitution or radically changing it". The concurring majority view held that the fundamental rights could be abridged by suitably amending Article 368 to convoke Constituent Assembly. The concurring majority view was that a Constituent Assembly could be called by passing a law under Entry 97 of List I and then that Assembly would be able to abridge or take away fundamental rights.

807. The minority view of five learned Judges expressed in 3 judgments as against the majority view of six learned Judges in Golak Nath case was this. 808. Wanchoo, J. spoke for himself and two concurring learned Judges as follows. Article 368 contains both the power and the procedure for amendment of the Constitution. It is incomprehensible that the residuary power of Parliament will apply to amendment of the Constitution when the procedure for amendment speaks of amendment by ratification by the States. When an entire part of the Constitution is devoted to amendment it will be more appropriate to read Article 368 as containing the power to amend because there is no specific mention of amendment in Article 248 or in any Entry of List I. The Constitution is the fundamental law and without express power to affect change legislative power cannot effect any change in the Constitution. Legislative Acts

are passed under the power conferred by the Constitution. Article 245 which gives power to make law for the whole or any part of India is subject to the provisions of the Constitution. If, however, power to amend is in Article 248 read with the

residuary Entry

in List I that power is to be exercised subject to the Constitution and it cannot change the

Constitution which is the fundamental law. It is because of the difference between the

fundamental law and the legislative power under the Constitution that the power to

amend cannot be located in the Residuary Entry which is law making power under the

Constitution.

809. Article 368 confers power on Parliament subject to the procedure provided therein

for amendment of any provision of the Constitution, It is impossible to introduce in the

concept of amendment, any idea of improvement. The word "amendment" must be given

its full meaning. This means that, by amendment an existing Constitution or law can be

changed. This change can take the form either of addition to the existing provisions, or

alteration of existing provisions and their substitution by others or deletion of certain

provisions altogether. An amendment of the Constitution is not an ordinary law made

under the powers conferred under Chapter I of Part XI of the Constitution, and therefore,

it cannot be subject to Article 13(2). It is strange that the power conferred by Article 368

will be limited by putting an interpretation on the word "law" in Article 13(2) which will

include Constitutional law also. The possibility of the abuse of any power has no

relevance in considering the question about the existence of the power itself. The power

of amendment is the safety valve which to a large extent provides for stable growth and

makes violent revolution more or less unnecessary.

810. The two other supporting minority views were these. Bachawat, J. arrived at these

conclusions. No limitation on the amending power can be gathered from the language of

Article 368. Therefore, each and every part of the Constitution may be amended under

Article 368. The distinction between the Constitution and the laws is so fundamental that

the Constitution is not regarded as a law or a legislative Act. It is because a Constitution

Amendment Act can amend the Constitution that it is not a law and Article 368 avoids all

reference to law making by Parliament. As soon as a Bill is passed in conformity with

Article 368 the Constitution stands amended in accordance with the terms of the Bill.

Amendment or change in certain Articles does not mean necessarily improvement. 811. Ramaswami, J. expressed these views. The definition of law in Article 13(3) does include in terms a Constitutional amendment though it includes any ordinance, order, bye-law, rule, regulation, notification, custom or usage. The language of Article 368 is perfectly general and empowers Parliament to amend the Constitution without any exception whatever. If it had been intended by the Constitution makers that the fundamental right guaranteed under Part III should be completely outside the scope of Article 368 it is reasonable to assume that they would have made an express provision to that effect. The expression "fundamental" does not lift the fundamental rights above the Constitution itself. In a matter of Constitutional amendment it is not permissible to assume that there will be abuse of power and then utilise it as a test for finding out the scope of amending power. 812. The majority view in Golak Nath case was that an amendment of the Constitution pursuant to Article 368 is law within the meaning of Article 13(2), and, therefore, an amendment of the Constitution abridging fundamental rights will be void. The majority view was on the basis that there was conflict between Article 13(2) and Article 368 and this basis was the result of the nature and quality of fundamental rights in the scheme of the Constitution. 813. It is, therefore, to be seen at the threshold as to whether there is any conflict between Article 13(2) and Article 368, namely, whether amendment of Constitution is law within the meaning of law in Article 13(2). Article 368 provides in clear and unambiguous terms that an amendment bill after compliance with the procedure stated therein and upon the President giving assent to such bill the Constitution shall stand amended in accordance with the terms of the bill. This Constitutional mandate does not admit or provide any scope for any conflict with any other Article of the Constitution. This is the fundamental law. No other Article of the Constitution has limited its scope. The moment the President gives his assent to an amendment bill the amendment becomes a part of the Constitution. There cannot be a law before the assent of the President. Therefore, the validity of any such supposed law cannot arise. An amendment of the Constitution becomes a part of the fundamental law. The legality of an amendment is no more open to attack than of the Constitution itself. The opening part of amended Article 368, viz., "An Amendment of

this Constitution may be initiated" and its concluding part before the proviso, viz., "The Constitution shall stand amended" show clearly that the whole Constitution can be amended and no part of the Constitution is excluded from the amendment. Herein lies the vital distinction between the Constitution and the ordinary law.

814. The distinction lies in the criterion of validity. The validity of an ordinary law can be questioned. When it is questioned it must be justified by reference to a higher law. In the case of the Constitution the validity is inherent and lies within itself. The validity of Constitutional law cannot be justified by reference to another higher law. Every legal rule or norm owes its validity to some higher legal rule or norm. The Constitution is the basic norm. The Constitution generates its own validity. It is valid because it exists. The Constitution is binding because it is the Constitution. Any other law is binding only if and in so far as it is in conformity with the Constitution. The validity of the Constitution lies in the social fact of its acceptance by the community. The Constitutional rules are themselves the basic rules of the legal system. The Constitution prevails over any other form of law not because of any provision to that effect either in the Constitution or elsewhere but because of the underlying assumption to that effect by the community. If Parliament passes a law under any of the items in the Union List abridging a fundamental right and also provides in that law itself that it shall not be invalid notwithstanding anything in Article 13 or Part III of the Constitution, yet the law made by Parliament will be invalid to the extent of its inconsistency with Part III of the Constitution. It will be invalid because Article 13 occurs in the Constitution which is supreme. The impugned Act cannot enact that it will be valid notwithstanding the Constitution.

815. The real distinction is that Constitutional law is the source of all legal validity and is itself always valid. Ordinary law on the other hand must derive its validity from a higher legal source, which is ultimately the Constitution. Law in Article 13(2) of the Constitution could only mean that law which needs validity from a higher source and which can and ought to be regarded as invalid when it comes in conflict with higher law. It cannot possibly include a law which is self validating and which is never invalid. The definition of law in Article 13 enumerates more or less exhaustively all forms of law

which need validation from higher source and which are invalid when they are in conflict with the Constitution. The definition does not mention Constitutional amendment. It is because an amendment being the Constitution itself can never be invalid. An amendment is made if the procedure is complied with. Once the procedure is complied with it is a part of the Constitution,

816. The expression "law" has been used in several Articles in Part III of the Constitution. These are Articles 17, 19 Clauses (2) to (6), 21, 22, 25, 26, 31, 33, 34 and 35. To illustrate, Article 17 states that untouchability is abolished and its practice in any form is forbidden. Article 17 also states that the enforcement of any disability arising out of untouchability shall be an offence punishable in accordance with law. The word "law" in Article 17 does not mean the Constitution. The Constitution leaves the matter of enforcement and punishment to law.

817. The foundation of the majority view in Golak Nath case that Article 13(2) takes in Constitutional law within its purview is that an amendment is a legislative process and is an exercise of legislative power. The majority relied on the decision in McCawley v. The King (1920) A.C. 691 and the Bribery Commissioner v. Pedrick Ranasinghe 1965 A.C. 172 in support of the view that there is no distinction between ordinary legislation and Constitutional amendment. The basis of the unanimous decision in Shankari Prasad case was on the distinction between legislative power and the constituent power. Therefore, the majority view in Golak Nath case overruled the view in Shankari Prasad case. Article 13(2) expressly declares that law taking away or abridging the rights conferred by Part III shall be void. This principle embodies the doctrine of ultra vires in a written Constitution.

The observation of Kania, C.J. in A.K. Gopalan v. The State of Madras 1950 S.C.R. 88 that Article 13(2) was introduced ex majore cautela because even if Article 13 were not there any law abridging or taking away fundamental rights would be void to the extent of contravention or repugnancy with fundamental rights in Part III refers to the doctrine of ultra vires which is a necessary implication of our Constitution. Therefore, there is no distinction between Article 13(2) which expressly affirms the doctrine of ultra vires and the necessary implication of the doctrine of ultra vires which has been applied to every part of our Constitution. If the express doctrine of ultra vires prevented an

amendment of
Part III of the Constitution contrary to its terms, equally an amendment of
other parts of
the Constitution contrary to their terms would be prevented by the implied
doctrine of
ultra vires. The result would be that an amendment of the Constitution which
contravened
the terms of the existing Constitution would be void. This would result in
absurdity. That
is why Article 368 expressly provides for the amendment of the Constitution.
818. Mr. Palkhivala on behalf of the petitioner submitted that Constitution
amendment
was law, within Article 13(2) and was void to the extent to which it contravened
the
fundamental rights and Article 368 did not prevail over or override Article 13
for these
reasons. Reference was made to the form of oath in the Third Schedule which uses
the
words "Constitution as by law established". This is said to mean that our
Constitution
was originally established by law and, therefore, every amendment thereto was
likewise
to be established by law. Article 13(1) is also said to cover Constitutional law
because
though Article 395 repealed the Indian Independence Act, 1947 and the Government
of
India Act 1935 the Constitutional laws of the Indian Princely States or some
other
Constitutional laws of British India were in existence. Therefore, the word
"Law" in
Article 13(2) will also include Constitutional law. The word "law" in Article
13(2) will in
its ordinary sense embrace Constitutional law, and there is no reason for
reading the word
"law", in a restricted sense to confine it to ordinary laws. The real question
is not whethe
r
there are any words of limitation in Articles 368 but whether there are any
words of
limitation in Article 13(2). It was amplified to mean if a limitation has to be
read in eith
er
of the two Articles 368 and 13(2) there is no reason why it should be read in
such a way
as to enable parliament to take away or abridge fundamental rights.
819. In Article 368 the word "law" is not used at all. Consequently the language
of
Article 368 raises no question about the applicability of Article 13(2). It is
inconceivable
that Constitutional laws of Indian Princely States or Constitutional laws of
British India
exist as Constitutional laws after the coming into existence of our
Constitution. Our
Constitution is the only fundamental law. All other laws which continue under
our
Constitution are ordinary laws. The fundamental error in including amendment of
the
Constitution in law under Article 13(2) is by overlooking the vital difference
between the

constituent and the legislative powers and in wrongly equating these powers. The definition of "State" in Article 12 includes Parliament. Part V of the Constitution contains

provisions relating to the powers of the three organs of the Union Government. Chapter II

of Part V relates to the legislative power of Parliament. Under Article 79 Parliament is

the Union Legislature provided for by the Constitution. Therefore, law in Article 13(2)

must mean a law of Parliament functioning under Chapter II of Part V. It cannot mean the

Constitution itself or an amendment of the Constitution. The reason is that the Constitution with its amendment is the supreme authority and the three organs of the

State derive their powers from this supreme authority.

820. The word "law" when used in relation to Constitutional law which is fundamental

law and ordinary law is not a mere homonym. If the word "law" here is not a mere homonym then it is a mistake to think that all the instances to which it is applied must

possess either a single quality or a single set of qualities in common. There is some

general test or criterion whereby the rules of the fundamental law or the rules of the

system of ordinary laws are tested and identified. When the word "law" is spoken in

connection with Constitutional law it cannot have the same meaning as ordinary law. It is

not arbitrary to use the word "law" in relation to Constitutional law in spite of its

difference from ordinary law.

821. Mr. Palkhivala contended that Constitutional laws of Princely States and of British

India prior to our Constitution survived as laws in force under Article 372.

Article 372 became necessary to make a provision similar to Section 292 of the Government of India

Act, 1935 following the repeal of the 1935 Act and the Indian Independence Act, 1947.

The purpose of Article 372 is to negative the possibility of any existing law in India being

held to be no longer in force by reason of the repeal of the law authorising its enactment.

A saving clause of the type of Article 372 is put in to avoid challenge to laws made under

the repealed Constitution. The total volume of law in the then British India had the legal

authority up to 14 August 1947 by reason of the Government of India Act 1935. The

Government of India Act 1935 with adaptations and the Indian Independence Act 1947

preserved the authority of those laws upto 25 January 1950. In so far as it is indisputable

that the Government of India Act, 1935 and the Indian Independence Act, 1947 were

repealed, the repeal of those Acts was repeal of the Constitutional law represented by

those Acts. By our Constitution there was a repeal of all other Constitutional

laws

operating in our country. There was repeal of "Constitution" in Princely States. 822. A distinction arises between the provisions of a Constitution which are described as

Constitutional law and provisions of a statute dealing with a statute which is treated to

have Constitutional aspects. An example of the latter type is a statute which provides for

the judicature. Mr. Seervai rightly said that the two distinct senses of Constitutional law

are mixed up in the contention of Mr. Palkhivala. In the first sense, Constitutional law is

applicable to a provision of the Constitution, and in the second sense, to a law enacted

under the Constitution dealing with certain classes of subject matter. Laws of the second

class fluctuate. An amendment of the Constitution becomes a part of the Constitution

itself. Mr. Seervail rightly contended that in order to show that law in Article 13(2)

includes amendment of the Constitution it is also necessary to show that the expression

"laws in force" in Article 13(1) includes Constitution amendment or the Constitution

itself It is impossible to accept the submission that the word "law" in Article 13(2)

includes the Constitution. The Constitution itself cannot include the Constitution. It is th

e

Constitution which continues the laws in force. Therefore, law in Article 13 is law other

than the Constitution and a fortiori it is other than amendment to the Constitution.

823. In non-British territory on the Constitution coming into force the Constitution of

Princely States lost its character as Constitutional law in the strict sense. It is in that

strict

sense that Wanchoo, J. rightly said in Golak Nath case that on our Constitution coming

into existence no other Constitutional law survived. Article 393 of our Constitution says

that the Constitution may be called the "Constitution of India". The Preamble recites that

the People in the Constituent Assembly gave this Constitution meaning thereby the

Constitution of India. Therefore, the people gave themselves no other Constitution. All

other laws whatever their previous status as strict Constitutional law became subordinate

laws subject to the provisions of our Constitution and this position is clear from the

language of Article 372.

824. In a broad sense law may include the Constitution and the law enacted by the

legislature. There is however a clear demarcation between ordinary law in exercise of

legislative power and Constitutional law which is made in exercise of constituent power.

Therefore, a power to amend the Constitution is different from the power to amend ordinary law. It was said by Mr. Palkhivala that legislative power is power to make law and constituent power is the power to make or amend Constitutional law and since law in its ordinary sense, includes Constitutional law the legislative power is the genus of which the constituent power is the species. The difference between legislative and constituent power in a flexible or uncontrolled Constitution is conceptual depending upon the subject matter. A Dog Act in England is prima facie made in exercise of legislative power. The Bill of Rights was made in the exercise of constituent power as modifying the existing Constitutional arrangement But this conceptual difference does not produce different legal consequences, since the provisions of a Dog Act inconsistent with the earlier provisions of the Bill of Rights would repeal those provisions pro tanto. In a rigid or controlled Constitution the distinction between legislative power and constituent power is not only conceptual but material and vital in introducing legal consequences. In a controlled Constitution it is not correct to say that legislative power is the genus of which constituent power is the species. The question immediately arises as to what the differentia is which distinguishes that species from other species of the same genus. It would be correct to say that the law making power is the genus of which legislative power and constituent power are the species. The differentia is found in the different procedure prescribed for the exercise of constituent power as distinguished from that prescribed for making ordinary laws. The distinction between legislative power and constituent power is vital in a rigid or controlled Constitution, because it is that distinction which brings in the doctrine that a law ultra vires the Constitution is void, since the Constitution is the touchstone of validity and that no provision of the Constitution can be ultra vires.

825. The legislatures constituted under our Constitution have the power to enact laws on the topics indicated in Lists I to III in the Seventh Schedule or embodied specifically in certain provisions of the Constitution. The power to enact laws carries with it the power to amend or repeal them. But these powers of legislatures do not include any power to amend the Constitution, because it is the Constituent Assembly which enacted the Constitution and the status given by Article 368 to Parliament and the State legislatures,

is the status of a Constituent Assembly. The distinction between the power to amend the Constitution and the ordinary power to enact laws is fundamental to all federal Constitution. When Parliament is engaged in the amending process it is not legislating. It is exercising a particular power which is sui generis bestowed upon it by the amending clause in the Constitution. Thus an amendment of the Constitution under Article 368 is constituent law and not law within the meaning of Article 13(2) and law as defined in Article 13(3)(a).

826. The procedure that Bill for amendment of the Constitution has to be introduced in either House of Parliament and passed by both Houses does not alter the status of Parliament to amend the Constitution as a Constituent Assembly and does not assimilate it to that of the Union legislature. At this stage it may be stated that in Shankari Prasad case it was said that law in general sense may include the Constitution and the procedure of amendment is assimilated to ordinary legislative procedure. Assimilation of procedure does not make both the procedure same. Nor are the two separate powers to be lost sight of. The Constituent Assembly which was summoned on 19 December, 1946 to frame a Constitution was also invested after independence with legislative power. It framed the Constitution as the Constituent Assembly. It enacted ordinary laws as legislature. Under Article V of the American Constitution the Congress functions not as a legislature but as a Constituent Assembly. In Australia when a Bill for amendment has to be passed by Commonwealth Parliament and then has to be submitted to the verdict of the electorate the process is not ordinary legislative process of the Commonwealth Parliament. In our Constitution when the amendment falls within the proviso to Article 368 it requires that the amendment must be ratified by at least one half of the State legislatures and the process is radically different from ordinary legislative procedure. The Union legislature acting under Chapter II of Part V has no connection with the State legislatures. Therefore, when amendment is affected under the proviso to Article 368 Parliament does not act as a Union legislature. The feature that in the passage of the bill for amendment of the Constitution the House of Parliament has to adopt the procedure for ordinary legislation has little bearing. If the intention of the framers of the Constitution was to leave to the Union legislature the power to effect amendments of the Constitution it would have been sufficient to insert a provision in Chapter II of Part V in that behalf without enacting a separate part and inserting a provision therein for amendment of the Constitution.

827. Under Clause (e) of Article 368 the Article itself can be amended. Therefore, an amendment of Article 368 providing that provisions in Part III can be amended

will be

Constitutional. If it was intended by Article 13(2) to exclude Part III altogether from the operation of Article 368 Clause (e) would not have been enacted. The Constituent Assembly thus enacted Article 368 so that the power to amend should not be too rigid nor too flexible. Clause (s) of Article 368 requires an amendment to be ratified by not less than half the number of States. The title of Part XX and the opening words of Article 368 show that a provision is being made for "amendment of this Constitution" which in its ordinary sense means every part of the Constitution. This would include Article 368 itself. There is no limitation imposed upon or deception made to the amendments which can be made. It is not permissible to add to Article 368 words of limitation which are not there.

828. The initiative for an amendment of the Constitution is with Parliament and not with the States. A bill for amendment is to be introduced in either House of Parliament. Again, a bill must be passed by each House by not less than two thirds of the members present and voting, the requisite quorum in each House being a majority of its total membership. In cases coming under the proviso the amendment must be ratified by the legislatures of not less than half the number of States. Ordinary legislative process is very different; A bill initiating a law may be passed by majority of members present and voting at a sitting of each House and at a joint sitting of House, the quorum for the meeting of either House being one tenth of the total members of the House.

829. The legislative procedure is prescribed in Articles 107 to 111 read with Article 100. Article 100 states "save as otherwise provided in the Constitution all questions at any sitting of either House or joint sitting shall be determined by a majority of votes of the members present and voting". Though Article 368 falls into two parts of the Article is one integral whole as is clear from the words "the amendment shall also require to be ratified". The first part of Article 368 requires that a bill must be passed in each House (1) by majority of the total membership of that House and (2) by a majority of not less than two thirds of the members of that House present and voting. These provisions rule out a joint sitting of either House under Article 108 to resolve the disagreement between the two Houses. Again the majority required to pass a bill in each House is not a majority of members of that House present and voting as in Article 100 but a majority of the total membership of each House and a majority of not less than two thirds of the

members of that House present and voting. These provisions are not only important safeguards when amending the Constitution, but also distinguishing features of Constituent power as opposed to legislative power. Under the first part of unamended Article 368 when a bill is passed by requisite majority of each House the bill must be presented for the President's assent.

830. Parliament's power to enact laws is not dependent on State legislature, nor can it be frustrated by a majority of State legislatures. The provisions in the proviso to Article 368 for ratification by the legislatures of the State constitute a radical departure from the ordinary legislative process of Parliament, State legislative process of ratification cannot possibly be equated with ordinary legislative process. If the bill is not ratified the bill fails. If it is ratified it is to be presented to the President for his assent. If the President assents the procedure prescribed by Article 368 comes to an end and the consequence prescribed comes into operation that the Constitution shall stand amended in accordance with the bill. But the result is not law, but a part of the Constitution and no court can pronounce any part of the Constitution to be invalid.

831. The exercise of the power of ratification by the State legislatures is constituent power and not ordinary law making power. It cannot be said that Article 368 confers

constituent power under its proviso but not under the main part. If the procedure has been followed the invalidity of an amendment cannot arise.

832. The provisions in Articles 4, 169, paragraph 7(2) of the Fifth Schedule and paragraph 21(2) of the Sixth Schedule were referred to for the purpose of showing that the word "law" is used in those provisions relating to amendments to the Constitution. It is, therefore, said that similar result will follow in the case of all amendments. These four

provisions confer on Parliament limited power of amendment. There are two features common to all these provisions. First, they confer on Parliament a power to make a law which inter alia provides for the specific class of amendments. Second, each of these provisions states that "no such law as aforesaid shall be deemed to be an amendment of the Constitution for the purpose of Article 368". The power to amend under any of these four provisions is a specific power for specific amendments and not a legislative power contained in the Legislative List or Residuary Legislative List.

833. The amendment under Article 4 follows a law providing for the formation of new States and alteration of areas, boundaries and names of existing States. It is obligatory on Parliament to make amendment of Schedules 1 and 4 and it is necessary to make amendments which are supplemental, incidental and consequential. In making such a law in so far as it affects the State but not Union territory a special procedure has to be followed.

834. Under Article 169 which provides for the abolition or creation of a State legislative Council Parliament has power to make a necessary law on a resolution being passed by the State Legislative Assembly for such abolition or creation by a majority of the membership of the Assembly and by majority of not less than two thirds of the members present and voting. It Parliament makes such a law that law must make the necessary amendments to the Constitution.

835. Schedules 5 and 6 provide for the administration of the Scheduled and Tribal areas which are governed by Part X and not by Part XI by which the Union and States are governed. The Schedules provide a mode of governance of those areas which is radically different from the Government of the States and the Union. Part X of the Constitution unlike Part XI is not "subject to the provisions of this Constitution". Paragraph 7 of Schedule 5 and paragraph 21 of Schedule 6 confer on Parliament a power to amend the schedules by law but no special procedure is prescribed for making such a law.

836. No question relating to those four provisions, however arises in the present case. In Article 368 the word "law" is not based at all. These four provisions for amendment deal with matters in respect of which it was considered desirable not to impose requirements of Article 368, and, therefore, it became necessary expressly to provide that such amendments shall not be deemed to be amendments of the Constitution for the purpose of Article 368. These four provisions indicate the distinction between the constituent power and the legislative power. If the power of amendment was located in the residuary Entry No. 97 in the Union List it would not have been necessary to grant that power of amendment again in these four provisions. These four provisions indicate that the Constitution makers intended to confer on Parliament power to make amendments in the provisions of the Constitution and having provided for a particular procedure to be followed in respect of matters covered by those four provisions it conferred a general

power on Parliament to make an amendment to the other Articles after complying with the requirements of Article 368.

837. The majority view in Golak Nath case said that Parliament could call a Constituent

Assembly either directly under the residuary power or pass a law under the Residuary

Entry to call a Constituent Assembly for amendment of fundamental rights. Of the two

views forming the majority one view did not express any opinion as to whether such a

Constituent Assembly could take away or abridge fundamental rights but the other view

expressed the opinion that such a Constituent Assembly could abridge fundamental rights. The majority view in Golak Nath case was that Parliament is a constituted body

and not a constituent body and a constituted body cannot abridge or take away fundamental rights. The majority view indicates that a constituent power was required to

amend the fundamental rights.

838. The majority view has totally ignored the aspect that constituent power is located in

Article 368, and, therefore, amendment under the Article is not a law within the meaning

of Article 13(2). If Parliament is a constituted body as was said by the majority view in

Golak Nath case it would be difficult to hold that such a body could bring about a

Constituent Assembly. The well-known principle that what cannot be done directly cannot be achieved indirectly will establish the basic infirmity in that majority view. If

fundamental rights can be abridged by Parliament calling a Constituent Assembly under

the Residuary Entry such Constituent Assembly will be a body different from Parliament

and will frame its own rules of business and Article 368 cannot have any application.

That will have a strange and startling result.

839. In the scheme of the Constitution containing Article 368 a Constituent Assembly

will be called extra Constitutional means and not one under the Constitution. A Constitution can be amended only in accordance with the process laid down in the Constitution. No other method is Constitutionally possible than that indicated in the

provision for amendment of the Constitution. Once the Constitution has vested the power

to amend in the bodies mentioned therein that is the only body for amending the Constitution. The people who gave the Constitution have expressed how it is to be

changed.

840. The distinction between constituent and legislative power is brought out by the

feature in a rigid Constitution that the amendment is by a different procedure than that by

which ordinary laws may be altered. The amending power is, therefore, said to be a recreation of the Constituent Assembly every time Parliament amends re-creation in

accordance with Article 368.

841. The two decisions in *McCawley v. The King* 1920 A.C. 691 and *The Bribery Commissioner v. Pedrick Ranasinghe* 1965 A.C. 172 on which the majority view in *Golak Nath* case relied to hold that amendment to the Constitution is an ordinary legislative process do not support that conclusion. The difference between flexible or

uncontrolled and rigid or controlled Constitutions in regard to amendment is that there

may be special methods of amendment in rigid or controlled Constitution. In a rigid

Constitution amendment is not by exercise of ordinary legislative power. The power to

amend is, therefore, described in a rigid Constitution as constituent power because of the

nature of the power. In a flexible Constitution the procedure for amendment is the same

as that of making ordinary law. A Constitution being uncontrolled the

distinction between

legislative and constituent powers gets obliterated because any law repugnant to the

Constitution pro tanto repeals a Constitution as was held in *McCawley* case.

Dicey in his

Law of the Constitution (10th Ed.) illustrates the view by his opinion that if the *Dentists*

Act said anything contrary to the Bill of Rights which can be described as Constitutional

document the *Dentists* Act would prevail. In a flexible or unwritten Constitution the word

Constitutional law is imprecise as it is used in respect of subject matter of law, e.g. a la

w

dealing with the legislature. In a rigid or written Constitution whatever is in the

Constitution would be the law of the Constitution.

842. In *McCawley* case the validity of the appointment of *McCawley* as a Judge of the

Supreme Court of Queensland was challenged as void on the allegation that

Section 6

Sub-section (6) of the Industrial Arbitration Act of 1916 was contrary to the provisions of

the Constitution of Queensland 1867. The Industrial Arbitration Act of 1916 by Section 6

Sub-section (6) authorised the Governor to appoint any Judge of the Court of Industrial

Arbitration to be a Judge of the Supreme Court of Queensland and provided that a Judge

so appointed shall have the jurisdiction of both offices and shall hold office as a Judge of

the Supreme Court during good behaviour. The sub-section further provided that Judge of

the Court of Industrial Arbitration shall hold office for seven years. The Governor in

Council by commission reciting Section 6 Sub-section (6) appointed *McCawley* who was

a Judge and the President of the Court of Industrial Arbitration to be a Judge

of the Supreme Court during good behaviour. By Sections 15 and 16 of the Constitution of 1867 the period during which Judges of the Supreme Court were to hold office was during good behaviour. The contention was that the appointment of McCawley under the Industrial Arbitration Act 1916 for a limited period of seven years was invalid since the Act was inconsistent with the Constitution Act 1867 and further that the Act of 1916 could not repeal or modify the provisions of the Constitution Act.

843. The Privy Council held that the Legislature of Queensland had power both under the Colonial Laws Validity Act 1865 Section 5 and apart therefrom under Clauses 2 and 22 of the Order-in-Council of 1859, Section 7 of the Act 18 & 19 Vict. c. 54 and Sections 2 and 9 of the Constitution Act of 1867 to authorise the appointment of a Judge of the Supreme Court for a limited period. Section 7 of the Act 18 & 19 Vict. c. 54 intended an order in Council to make provision for the government of the Colony and for the establishment of a legislature. The Order-in-Council 1859 by Clause 2 gave full power to the legislature of the Colony to make further provision in that behalf. The Order-in-Council of 1859 by Clause 22 gave the legislature full power and authority from time to time to make laws altering or repealing all or any of the provisions of this Order in the same manner as any other laws for the good Government of the colony.

844. Section 5 of the Colonial Laws Validity Act gave the legislature full power to alter the Constitution.

845. Section 2 of the Constitution Act of 1867 gave the legislature power to make laws for the peace, welfare and good government of the Colony. Section 9 of the Constitution required a two thirds majority of the legislative Council and Legislative Assembly as a condition precedent of the validity of legislation altering the Constitution of the Legislative Council. Section 6 Sub-section (6) which authorised an appointment as a Judge of the Supreme Court only during the period during which the person appointed was a Judge of the Court of Industrial Arbitration was found to be valid legislation. It was found that the Constitution of Queensland was as flexible as distinct from rigid Constitution. Power to alter the Constitution by ordinary law was also said to exist both in virtue of the Colonial Laws Validity Act, 1865 Section 5 and independently of that Act in virtue of Clause 22 of the Order in Council 1859 and Sections 2 and 9 of the

Constitution Act of 1867.

846. The decision in McCawley case shows that unless there is a special procedure prescribed for amending any part of the Constitution the Constitution is uncontrolled and can be amended by the manner prescribed for enacting an ordinary law and therefore a subsequent law inconsistent with the Constitution would pro tanto repeal the Constitution. The decision also established that a Constitution largely or generally uncontrolled may contain one or more provisions which prescribe a different procedure for amending the provisions of the Constitution. If this is prescribed the procedure for amendment must be strictly followed.

847. The legislature of Queensland was found to be master of its own household except in so far as its powers were restricted in special cases. No such restriction was establishe

d in the case before the Privy Council. The legislature had plenary power there. The legislature was not required to follow any particular procedure or to comply with any specified conditions before it made any law inconsistent with any of the provisions of Constitutional document.

848. The contention of the respondent in McCawley case was that the Constitution of Queensland was controlled and that it could not be altered merely by enacting legislation inconsistent with its Articles but that it could be altered by an Act which in plain and unmistakable intention of the legislature to alter consequently gave effect to that intentio

n by operative provisions. The Judicial Committee thought this Constitution would amount to a Constitution which was neither controlled nor uncontrolled. It was not controlled because the future generation could by a merely formal Act correct it at pleasure. It was said to be not uncontrolled because the framers prescribed to their successors a particular mode by which they are allowed to effect Constitutional changes. Section 22 of the Order in Council conferred power and authority in legislature from time to time to make laws altering or repealing all or any of the provisions of the Order in Council in the same manner as any other laws for the good government of the country. The Constitution Act of 1867 was contended to enact certain fundamental organic provisions of such a nature as to render the Constitution controlled. It was found impossible to point to any document or instruction giving or imposing on the Constitution of Queensland such a quality. The

decision in McCawley case related to uncontrolled Constitution which gave the legislature full power to make laws except on one subject and, therefore, a law made by the legislature under such a Constitution could pro tanto conflict with and repeal the Constitution. That is not our Constitution.

849. In Ranasinghe case the validity of the appointment of Bribery Tribunal was challenged. The Supreme Court of Ceylon took the view that the Bribery Tribunal was not appointed by the Judicial Service Commission in accordance with the provisions of Section 55 of the Ceylon Constitution Order in Council. It was, therefore, not lawfully appointed. It was common ground that the appointment of the Bribery Tribunal was not in accordance with Section 55 of the Ceylon Constitution Order in Council, 1946. Section 55 vested in the Judicial Service Commissioner the appointment, dismissal and disciplinary control of Judicial Officers, viz., Judges of lesser rank. The removal of Judges of the Supreme Court could be by the Governor General on an address of the Senate and the House of Representatives.

850. Section 29 of the Ceylon (Constitution) Order in Council provided in Sub-sections

(1), (2), (3) and (4) as follows:

29(1) Subject to the provisions of this Order, Parliament shall have power to make laws for the peace, order and good government of the Island.

(2) No such law shall-(a) prohibit or restrict the free exercise of any religion;

(3) Any law made in contravention of Sub-section (2) of this section shall, to the extent of such contravention, be void.

(4) In the exercise of its powers under this section Parliament may amend or repeal any of the provisions of this Order, or of any other Order of Her Majesty in Council in its application to the Island:

Provided that no Bill for the amendment or repeal of any of the provisions of this Order shall be presented for the Royal Assent unless it has endorsed on it a certificate under the hand of the Speaker that the number of votes cast in favour thereof in the House of Representatives amounted to not less than two-thirds of the whole number of Members of the House (including those not present).

Every certificate of the Speaker under this sub-section shall be conclusive for all purposes and shall not be questioned in any court of law.

851. The Judicial Committee found that there was a conflict between Section 55 of the Ceylon Constitution Order and Section 41 of the Bribery Amendment Act. The Privy Council found that Section 29(4) of the order was attracted but the requirements of Section 29(4) had not been complied with and, therefore, the appointment of the Bribery Tribunal was invalid. The certificate of the Speaker under the proviso to Section 29(4) of the Ceylon Constitution Order was an essential part of the legislative process. There was no such certificate in the case of the legislation under which the appointment of the impugned Tribunal was made. The Judicial Committee said that a legislature has no power to ignore the conditions of law making that are imposed by the regulating instrument. This restriction exists independently of the question whether the legislature is sovereign as the legislature of Ceylon or whether the Constitution is uncontrolled as happened in McCawley case with regard to the Constitution of Queensland.

852. The Judicial Committee said "A Constitution can, indeed, be altered or amended by the legislature, if the regulating instrument so provides and if the terms of those provisions are complied with; and the alteration or amendment may include the change or abolition of these provisions. But the proposition which is not acceptable is that a legislature, once established, has some inherent power derived from the mere fact of its establishment to make a valid law by the resolution of a bare majority which its own constituent instrument has said shall not be valid law unless made by a different type of majority or by a different legislative process".

853. It was contended that just as the legislature of the Colony of Queensland had power by mere majority vote to pass an Act that was inconsistent with the provisions of the existing Constitution of that Colony as to the tenure of Judicial Office so the legislature of Ceylon had no less a power to depart from the requirements of a section such as Section 55 of the Ceylon Constitution, notwithstanding the wording of Sections 18 and 29(4). Section 18 in effect says that a legislation can be passed by a majority of votes subject to the provisions in Section 29(4) of the Constitution. The Judicial Committee said that in McCawley case the legislature had full power to make laws by a majority except upon one subject that was not in question and the legislation was held to be valid because it was treated as pro tanto an alternation of the Constitution which was neither fundamental in the sense of being beyond change nor so constituted as to require any

special process to pass a law upon the topic dealt with. The word "fundamental" in the sense of "being beyond change" refers to express limitations as to power or manner and form of change. These words do not mean as Mr. Palkhivala contended that there are fundamental features of the Constitution which cannot be amended.

854. The legislature purported to pass a law which being in conflict with Section 55 of the Order in Council must be treated if it is to be valid, as an implied alteration of the Constitutional provisions about the appointment of judicial officers. Such alterations could only be made by laws which complied with the special legislative procedure laid down in Section 29(4). The provisions in Section 29(4) were found not to confer on the Ceylon legislature the general power to legislature so as to amend the Constitution by ordinary majority resolution which the Queensland legislature was found to have under Section 2 of the Queensland Constitution Act

855. Ranasinghe case shows that Parliament which by its own Act imposed procedural conditions upon the legislative process is no more limited or non-sovereign than a legislature which has such conditions imposed on it by the Constitutional instrument. A Constitutional instrument which places procedural restraints upon the forms of law making places the legislature under a compulsion to obey them. In McCawley case it was said that the Colonial Legislature with plenary powers could treat the Constitutional document which defined its powers as if it were a Dog Act This proposition as a result of Ranasinghe case is narrowed to the extent that where provisions for procedural special majority are laid down in the Constitutional document they cannot be treated as a provision in the Dog Act might be.

856. These decisions indicate the distinction between procedural and substantive limitations on the legislative process. In Ranasinghe case the issue was one of personal liberty in the sense that the respondent claimed the right not to be imprisoned except by a valid law. No question was raised about the right of religion protected by Sections 29(2) and (3) of the Ceylon Constitution. It was also not the respondent's case there that any provision was unamendable. It would be unusual for the Privy Council to say by way of an obiter dictum that a provision was not amendable contrary to the respondent's submission. Though the Privy Council did not use the words "legislative and constituent" in distinguishing ordinary law from law amending the Constitution, the Privy Council in referring to the Ceylon Constitution instrument showed that the familiar distinction is the basis of the judgment.

857. The Privy Council is dealing with Section 29 took note of the special heading under which Section 29 appears in the Constitution. That special heading is "legislative power and procedure". The opening words of Section 29 are that subject to the provisions of this order Parliament shall have powers to make laws. These are similar to the opening words in Article 245 of our Constitution. Section 18 of the Ceylon Constitution prescribes the ordinary legislative procedure for making laws by a bare majority unless otherwise provided for by the Constitution, which is to be found in Section 29(4) of the Ceylon Constitution. Our Constitution in Article 100 makes an identical provision for ordinary legislative procedure. Section 29(2) confers rights of freedom of religion and Section 29(3) states that no laws shall be made prohibiting or restricting such freedom. Part III of our Constitution contains among other fundamental rights, rights to freedom of religion. Section 29(3) expressly makes laws in contravention of Section 29(2) void to the extent of contravention. Article 13(2) of our Constitution expressly makes law which takes away or abridges fundamental rights void to the extent of the contravention. Section 29(4) of the Ceylon Constitution dealing with the amendment of the Constitution does not expressly make void a law amending the Constitution.

858. It follows from McCawley case and Ranasinghe case that a legislature has no power to ignore the conditions of law making imposed upon it which regulate its power to make law. The Ceylon legislature had no general power to legislate so as to amend its general power by ordinary majority resolution such as Queensland legislature was found to have under Section 2 of the Queensland Constitution. Peace, order and good government in Section 29(1) of the Ceylon Constitution is not the same as amendment contemplated in Section 29(4) of the Ceylon Constitution. In Ranasinghe case the Judicial Committee referred to the social compact. The compact is this. The inhabitants of Ceylon accepted the Ceylon Constitution on the footing that the various rights conferred, liabilities imposed and duties prescribed under the law cannot be altered in the ordinary course of legislation by a bare majority. But if all these were to be changed then such a change could only be made under the strongest safeguard of the amending process which in the case of Ceylon was not less than two-third of the absolute membership. These rights are the solemn compact. These valuable rights are conferred on the people. Under

ordinary

law by ordinary majority they cannot be taken away.

859. The absence of an express provision in Section 29(4) of the Ceylon Constitution that

an amendment of the Constitution in contravention of the terms of that sub-section shall

be void need not support the conclusion that such an amendment was valid.

Section 29(1)

of the Ceylon Constitution is expressed to be "subject to the provisions of this Order" and

any power under Section 29(4) is expressly subject to the proviso there. The Privy

Council held that the opening words of Section 29 introduced into the Constitution of

Ceylon the necessarily implied doctrine of ultra vires. The proposition will apply directly

to the same opening words of our Article 245. The Privy Council accepted the distinction

made in McCawley case between controlled and uncontrolled Constitutions by emphasising the observation in McCawley case with reference to Section 9 of the Queensland Constitution. The description of Section 29(2) of the Ceylon Constitution as

an entrenched provision means that it can be amended but only by special procedure in

Section 29(4). That is the meaning of the word "entrenched". This meaning alone is

consistent with the clear language of the amending power and also with the decision.

Section 29(4) does not limit the sovereignty of the Ceylon legislature because the

legislature can always pass the amendment after getting two-thirds majority and the

certificate.

860. Counsel for the respondent in Ranasinghe case stated that there was no limitation

except the procedure and even that limitation could be removed by amendment complying with Sub-section (4). The Privy Council affirmed that position. There is

nothing to prevent by appropriate amendment a deletion of Section 29(4) of the Ceylon

Constitution which would then empower Parliament to achieve the power to amend by an

ordinary majority. Section 29(1) is not legislative power alone but a composite power

when read along with Section 29(4) in the context of the Ceylon Constitution. It includes

both legislative and constituent power. Sub-sections (2) and (3) of Section 29 are not the

grant of power but limitation on power. Its terms show that limitation is at any rate on the

legislative power of enacting laws contrary to Sub-sections (2) and (3) of Section 29. If

Section 29(1) is a composite legislative and constituent power and Sub-section (2) and

(3) are a restraint on legislative power the constituent power under Sub-section (4)

remains unaffected. The sequiter is that Section 29(4) is consistent only with the view

that so far as amendment of Sub-sections (2) and (3) is concerned amendment is permitted

and there is no limitation on constituent power under Section 29(4). The Privy Council

took the widest view of the amending power. In fact the narrower view was not argued.

861. Our Constitution in Article 13(2) by its express declaration with reference to law and the State widely defined has no higher efficacy in rendering a law in contravention of

its terms void than the opening words of Article 245 have in rendering a law void in

contravention of term mentioned therein. Therefore, in treating Article 13(2) as having

that effect in regard to Constitutional amendment the majority judgment in Golak Nath

case was inept. In rejecting the distinction between legislative and constituent powers the

leading majority view in Golak Nath case was induced by the absence of the use of the

labels but the same concepts were clearly indicated by the Privy Council by wholly

describing the characteristic features of legislative and constituent powers.

862. If Article 368 had begun with a non-obstante clause it could not have been said that

amendment under Article 368 would be law within the meaning of Article 13(2). The

Attorney General rightly said that there is no non-obstante clause in Article 368 because

of the quality of amending power and because the amending power is a constituent power

and not ordinary legislative power. This is the position of the amending clause in a

written Constitution. When the power under Article 368 is exercised Parliament acts as a

recreation of Constituent Assembly. Therefore, such power cannot be restricted by or

widened by any other provision. As soon as an amendment is made it becomes a part of

the Constitution. An amendment prevails over the Article or Articles amended. The fact

that Article 368 confers constituent powers is apparent from the special conditions

prescribed in the Article. Those conditions are different from ordinary law making

process. Article 368 puts restraints on the ordinary law making process and thus confers

constituent power. The Constituent Assembly was fully aware that if any limitation was

to be put on the amending power the limitation would have to be expressly provided for.

Article 305 of the Draft Constitution provided reservation of seats for certain sections of

people in the legislature for 10 years. This reservation was not accepted by the Constituent Assembly. This shows that if the Drafting Committee or the

Constituent

Assembly wanted to exclude fundamental rights from the operation of Article 368 corresponding to Article 304 in the Draft Constitution they could have expressly done so.

863. In Ghulam Sarwar v. Union of India (1967 2 S.C.R. 271 it was said there was a

distinction between deprivation of fundamental rights by force of a

Constitutional provision itself and such deprivation by an order made by President in exercise of a power conferred on him under Constitutional provision. The dissenting view in Ghulam Sarwar case was that an order of the President was not a law within the meaning of Article 13(2). In Mohd. Yakub v. State of Jammu & Kashmir (1968) 2 S.C.R. 227 the majority view of the Constitution Bench was that an order of the President under Article 359 was not law within the meaning of Article 13(2). There is no distinction between Article 358 and Article 359(1). Article 358 by its own force suspends the fundamental rights guaranteed by Article 19. Article 359(1) on the other hand does not suspend any fundamental rights of its own force but it gives force to order by the President declaring suspension of the enforcement of any fundamental right during the period of emergency. In Mohd. Yakub case it was said that it could not mean that an order under Article 359(1) suspending the enforcement of a particular fundamental right had still to be tested under the very fundamental right which it suspended. Mohd. Yakub case establishes that the expression "law" in Article 13(2) is not all embracing in spite of the exclusive definition of law in Article 13(3)(a).

864. The word "law" appears in various Articles of our Constitution but not in Article 368. The reason is that the power under Article 368 is not a power to make ordinary laws under the Constitution but is the constituent power. There could be no law within the meaning of Article 13(2) at any stage before the amendment became a part of the Constitution under Article 368. There is no hiatus between an amendment being a law and thereafter a part of the Constitution. Immediately upon the passage of the Bill for the amendment the Constitution stands amended.

865. The historical background of Article 13(2) throws some light on the question as to whether Article 13(2) prevails over Article 368. On 17 March, 1947 the Constitutional Advisor Sir B.N. Rau had addressed a letter to the members of Central and Provincial legislatures. A questionnaire was annexed to that letter. Question No. 27 was "What provisions should be made regarding amendments to the Constitution". A note was appended to that question which will be found in Shiva Rao Framing of India's Constitution referred to as Shiva Rao Vol. II pp. 448-451. The methods of amendment of Constitution in the United Kingdom, Canada, Australia, United States of America, Switzerland and Ireland were elucidated in that note. The note also drew attention that the fact that in various Constitution express limitations were put on amending certain provisions of the Constitution. The portion of the note relating to the Constitution of

Australia indicated such limitations.

866. The draft report of the sub-Committee on fundamental rights dated 3 April 1947

contained an annexure which dealt with fundamental rights. See Shiva Rao Vol. II p. 137

seq. Clause 2 of the annexure was as follows:

Any law or usage in force within the territories of the Union immediately before the commencement of this Constitution and any law which may hereafter be made by the State inconsistent with the provisions of this Chapter/Constitution shall be void to the extent of such inconsistency.

867. The Constitutional Adviser suggested that the word "Constitution" was preferable to

the word "chapter" because the entire Constitution was to prevail over law.

868. On 23 April, 1947 the Advisory Committee on Fundamental Rights presented an interim report addressed to the President of the Constituent Assembly containing an

annexure providing for justiciable fundamental rights. See Shiva Rao Vol. II pp. 294-296

seq. Clause 2 of the Annexure to that report was as follows:

All existing laws, notification, regulations, customs or usages in force within the territories of the Union inconsistent with the rights guaranteed under this part of the Constitution shall stand abrogated to the extent of such inconsistency nor shall the Union or any unit may make any law taking away or abridging any such right.

869. Clause 2 of the annexure to the interim report was discussed in the Constituent

Assembly on 29 April, 1947. Shri K. Santhanam moved an amendment to Clause 2. The

amendment was as follows : In Clause 2 for the words "nor shall the Union or any unit

make any law taking away or abridging any such right" the following be substituted:

"Nor shall any such right be taken away or abridged except by an amendment of the

Constitution". The amendment was accepted as will appear in Constituent Assembly Debates Vol. III p. 416.

870. In October, 1947 the Draft Constitution was prepared by the Constitutional Advisor.

Clause 9(2) of the said Draft Constitution which later on corresponded to Article 13(2) of

our Constitution was as follows:

Nothing in this Constitution shall be taken to empower the State to make any law which curtails or taking away any of the rights conferred by Chapter II of this Part except by way of amendment of this Constitution under Section 232 and any law made in contravention of this sub-section shall, to the extent of the Contravention, be void.

871. It will be seen that Clause 9(2) in the Draft Constitution included the qualification

"except by way of amendment of the Constitution under Section 232". Clause 232 in the

Draft Constitution prepared by the Constitutional Advisor became Article 304 in the

Constitution prepared by the Drafting Committee and eventually became Article 368 of

our Constitution. In Shiva Rao, Vol. III p. 325 it appears that the Drafting Committee on

30 October, 1947 at a meeting gave a note forming the minutes of that meeting that

Clause 9(2) should be revised as follows:

The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this subsection shall, to the extent of the contravention, be void.

872. No reason is recorded in these minutes as to why the resolution adopted by the

Constituent Assembly by passing Shri Santhanamâ TMs amendment was disregarded. No indication was given in the forwarding letter of Dr. Ambedkar in the Note appended

thereto as to why the amendment of Shri Santhanam which had been accepted by the Constituent Assembly was deleted. Nor does the Draft Constitution indicate either by sidelines or in any other manner that the decision of the Constituent Assembly had been disregarded.

873. This history of the formation and framing of Article 13(2) shows that the intention

of the Constituent Assembly was that Article 13(2) does not control the Article relating

to the amending of the Constitution. It must be assumed that the Drafting Committee

consisting of eminent men considered that an express exclusion of the amending Article

from the operation of the clause corresponding to Article 13(2) was unnecessary and the

fear that that Article would cover the amending Article was groundless. It also appears

that no discussion took place after the Draft Constitution had been presented to the

Constituent Assembly by Dr. Ambedkar on the deletion or disregard of Shri Santhanamâ TMs

amendment. The history of Article 13(2) shows that the Constituent Assembly clearly

found that it did not apply to an amendment of the Constitution.

874. The distinction between constituent and legislative power in a written Constitution

is of enormous magnitude. No provision of the Constitution can be declared void because

the Constitution is the touchstone of validity. There is no touchstone of validity outside

the Constitution. Every provision in a controlled Constitution is essential or so thought by

the framers because of the protection of being amendable only in accordance with the Constitution. Every Article has that protection. The historical background of Article 13(2) indicates that the Constitution-makers dealt separately with legislative power by providing for the same in Part XI and entrusted the constituent power to authorities mentioned in Article 368 and that authority has the same power as the Constituent Assembly because it has not put any fetter upon it. The draft Article 305 which provided for a limitation as to time for amendment of certain matters was eventually deleted. If the framers of the Constitution wanted to forbid something they would say so. 875. The vitality of the constituent power not only indicates that the Constitution is in the words of Maitland the *suprema potestas* but also the fact that the amending power is put in a separate Article and Part of the Constitution establishing that it deals with a topic other than legislative power and the power is meant to be exhaustive leaving nothing uncovered. The very fact that amending power is not put in any legislative power or is not attached to a subject which is the subject matter of legislative power leaving aside the four sets of provisions, namely, Articles 4, 169, paragraph 7 Schedule 5 and paragraph 21 Schedule 6 containing specific power of amendment shows that that amending power was meant to be exhaustive and plenary. If a power of amendment without any express limitation was given it was because a legal Constitutional way of bringing a change in the Constitution was desirable or necessary. Otherwise there would be no legal way of effecting the change. It cannot be attributed to the framers of the Constitution that they intended that the Constitution or any part of it could be changed by unconstitutional or illegal methods. 876. If an amendment of the Constitution is made subject to Article 13(2) the necessary conclusion then is that no amendment of the Constitution is possible. The opening words of Article 245 which deals with legislative power indicate that any law made under Article 246(1) read with List I of the Seventh Schedule is subject to the limitations on legislative power imposed by all the Articles in the Constitution. These limitations cannot be altered or amended in exercise of legislative power, if the power of amendment is said to be located in the Residuary Entry 97 in List I. The history of residuary power in the Government of India Act, 1935 whose scheme was adopted in the Constitution shows that the topic of amendment was not only present to the mind of the Constituent

Assembly but also that the Constituent power could not reside in the residuary power.

877. The conclusions on the question as to whether Article 13(2) overrides Article 368

are these. Article 13(2) relates to laws under the Constitution. Laws under the Constitution are governed by Article 13 (2). Article 368 relates to power and procedure

of amendment of the Constitution. Upon amendment of the Constitution the Constitution

shall stand amended. The Constitution is self validating and self executing.

Article 13(2)

does not override Article 368. Article 13(2) is not a fundamental right. The Constitution

is the touchstone. The constituent power is sui generis. The majority view in Golak Nath

case that Article 13(2) prevails over Article 368 was on the basis that there was no

distinction between constituent and legislative power and an amendment of the Constitution was law and that such law attracted the opening words of Article 245 which

in its turn attracted the provisions of Article 13(2). Parliament took notice of the two

conflicting views which had been taken of the unamended Article 368, took notice of the

fact that the preponderating judicial opinion, namely, the decisions in Shankari Prasad

case Sajjan Singh case and the minority views of five learned Judges in Golak Nath case

were in favour of the view that Article 368 contained the power of amendment and that

power was the constituent power belonging to Parliament Wanchoo, J. rightly said in

Golak Nath case that the power under Article 368 is a constituent power to change the

fundamental law, that is to say, the Constitution and is distinct from ordinary legislative

power. So long as this distinction is kept in mind Parliament will have power under

Article 368 to amend the Constitution and what Parliament does under Article 368 is not

ordinary law making which is subject to Article 13(2) or any other Article of the

Constitution. This view of Wanchoo, J. was adopted by Parliament in the

24th Amendment Act which made explicit that under Article 368 Parliament has the constituent power to amend this Constitution.

878. In order to appreciate and assess Mr. Palkhivala's other contention of implied and

inherent limitations on the amending power, it is necessary to find out the necessity and

importance of the amending power to arrive at the true meaning of the expression "amendment".

879. Mr. Palkhivala made these submissions. The word "amendment" means on the one

hand not the power to alter or destroy the essential features and on the other there are

inherent and implied limitations on the power of amendment. It is imperative to consider the consequences of the plea of limited power and also of the plea of limitless power. The test of the true width of a power is not how probable it is that it may be exercised, but what can possibly be done under it. The hope and expectation that it will never be used is not relevant. Reliance is placed on the observations in Maxwell on the Interpretation of Statutes, 12th Ed. (1969) pp. 103-106 that it is important to consider the effects or consequences which would result from it, for they often point out the real meaning of the words, before adopting any proposed construction of a passage susceptible of more than one meaning. The reasonableness of the consequences which follow from a particular construction on the one hand and the unreasonable result on the other are the two alternatives in the quest for the true intention of Parliament. Crawford Construction of Statutes (1940 Ed.) pp. 286-290 was referred to for the proposition that where the statute is ambiguous or susceptible to more than one meaning, the construction which tends to make the statute unreasonable should be avoided. Uncertainty, friction or confusion on a construction is to be avoided because preference is to be given to the smooth working of the statute. The Court adopts which is just reasonable and sensible rather than that which is none of these things. It is not to be presumed that the legislature intended the legislation to produce inequitable results. Usurpation of power contrary to the Constitution is to be avoided.

880. Reliance was placed by Mr. Palkhivala on American Jurisprudence 2d. Vol. 16 Article 59 at pp. 231-232, Article 72 at p. 251, Article 287 at pp. 270-71 and Article 88 at pp. 273-74 in support of these propositions. First, questions of Constitutional construction are in the main governed by the same general principles which control in ascertaining the meaning of all written instruments particularly statutes. External aids or arbitrary rules applied to the construction of a Constitution are of uncertain value and should be used with hesitation and circumspection. Second, Constitutions are general and many of the essentials with which Constitutions treat are impliedly controlled or dealt with by them and implication plays a very important part in Constitutional construction. What is implied is as much a part of the instrument as what is expressed. Third, a Court may look to the history of the times and examine the state of things existing when the Constitution was framed and adopted. The Court should look to the nature and object of the

particular powers, duties and rights in question with all the light and aids of the contemporary history. Fourth, proceedings of conventions and debates are of limited value as explaining doubtful phrases. Similarly, the opinions of the individual members are seldom considered as of material value.

881. Mr. Palkhivala said that the word "amend" may have three meanings. First, it may mean to improve or better to remove an error, the quality of improvement being considered from the stand point of the basic philosophy underlying the Constitution. Second, it may mean to make changes which may not fall within the first meaning but which do not alter or destroy any of the basic essential or any of the essential features of the Constitution. Third, it may mean to make any changes in the Constitution including changes falling outside the second meaning. The first meaning was preferred. The second was said to be a possible construction. The third was ruled out.

882. The crux of the matter is the meaning of the word "amendment" The Oxford Dictionary meaning of the word is to make professed improvements in a measure before Parliament; formally, to alter in detail, though practically it may be to alter its principle, so as to thwart it. The Oxford Dictionary meanings are also alteration of a bill before Parliament; a clause, paragraph, or words proposed to be substituted for others, or to be inserted in a bill (the result of the adoption of which may even be to defeat the measure).

In Words and Phrases Permanent Edition, Volume 3 the meaning of the word "amend" and "amendment" are change or alteration. Amendment involves an alteration or change, as by addition, taking away or modification. A broad definition of the word "amendment" will include any alteration or change. The word "amendment" when used in connection with the Constitution may refer to the addition of a provision on a new independent subject, complete in itself and wholly disconnected from other provisions, or to some particular article or clause, and is then used to indicate an addition to, the striking out, or some change in that particular article or clause.

883. The contention that the word "amendment" in Article 368 should bear a limited meaning in view of the expression "amend by way of addition, variation or repeal any of the provisions of this Schedule" occurring in paragraphs 7 and 21 in Schedules 5 and 6, is

unsound for the following reasons.

884. First, the power of amendment conferred by the four provisions, namely, Article 4 read with Articles 2 and 3, Article 169, paragraphs 7 and 21 in Schedules 5 and 6 is a limited power. It is limited to specific subjects. The exercise of the power of amendment under those four provisions, if treated by Articles themselves, is an uncontrolled power since the power can be exercised by an ordinary law. But as a part of the Constitution the power is a subordinate power because these Articles themselves are subject to the amending provisions of Article 368. Article 368 is the only provision of the Constitution which provides for the amendment of this Constitution which means the Constitution of India and every part hereto. It may be mentioned that in construing Article 368 the title of the part "Amendment of the Constitution" is an important aid to construction. The marginal note which speaks of the procedure of amendment is not complete by itself because the procedure when followed results in the product, namely, an amendment of the Constitution which is not only a matter of procedure.

885. Second, these four provisions which are in the same terms, namely, "no such law shall be deemed to be an amendment of this Constitution for the purpose of Article 368" show that but for these terms the amendment would have fallen within Article 368 and was being taken out of it. This is an important consideration particularly in connection with Schedules 5 and 6 which provide that Parliament may, from time to time by law, amend by way of addition, variation or repeal any of the provisions of this Schedule. These provisions show that an amendment by way of addition, variation or repeal will also fall within the amendment of the Constitution provided for in Article 368 but is being taken out of Article 368. This express exclusion contains intrinsic evidence that the meaning of the word "amendment" in Article 368 includes amendment by way of addition, alteration or repeal.

886. Third, paragraphs 7 and 21 in Schedules 5 and 6 which provide that Parliament may from time to time by law, amend by way of addition, variation or repeal indicate the necessity of amendments from time to time. The expression "by way of" does not enlarge the meaning of the word "amendment" but clarifies. The expression "by way of" shows that the words addition, variation or repeal are substitutes of the word "amendment" and are forms of intention. The whole Schedule cannot be repealed either by paragraph 7 or

by paragraph 21, because Article 244 provides for the administration of Scheduled Areas and tribal areas on the application of the two respective Schedules. The words "from time to time" also indicate that because of subject matter amendments may be from time to time. The history behind the two Schedules originates in Section 91 and 92 of the Government of India Act, 1935 dealing with excluded areas and partially excluded areas.

887. Fourth, reference was made to Section 9(1)(c) of the India Independence Act 1947

which empowered the Governor General to make omissions from, additions to and adaptations and modification to the Government of India Act, 1935. The Government of

India Third Amendment Act 1949 amended Section 291 of the 1935 Act and empowered the Governor General to make such amendments as he considers necessary whether by

way of addition, modification or repeal. It was, therefore, said that when our Constitution

did not use the expression "by way of addition, modification or repeal" the word "amendment" in Article 368 will have a narrower meaning. The expression "amendment"

has been used in several Articles of the Constitution. These are Articles 4(1) and (2),

108(4), 109(3), and 4, 111, 114(2), 169(2), 196(2), 198(3) and (4), 200, 201, 204(2),

207(1), (2), 240(2), 274(1), 304(b) and 349. In every case amendment is to be by way of

variation, addition or repeal. Again, different expression have been used in other Articles.

In Article 35(b) the words are alter, repeal. In Article 243(1) the words are repeal or

amend. In Article 252(2), the expression is amend or repeal. In Article 254(2) proviso the

words are add to, amending, variation or repeal. In Article 320(4) the words are such

modifications whether by way of repeal or amendment. In Article 372(1) the words are

altered or repealed or amended. In Article 372(2) the words are such adaptations and

modifications by way of repeal or amendment. In Article 392(1) the expression is such

adaptations by way of modification, addition or commission. Again, in Article 241(2) the

words are modification or exceptions. In Article 364 the words used are exceptions or

modifications. In Article 370(1)(d) and (3) the words are modifications and exceptions.

Again, in Schedule 5 paragraph 5(1) and Schedule 6 paragraphs 12(a), (b), 19(1) (a) the

word used are exceptions or modifications. Modifications in Article 370(1)(d) must be

given the widest meaning in the context of a Constitution and in that sense it includes an

amendment and it cannot be limited to such modifications as do not make any radical

transformation.

888. The several Constitution Amendment Acts show that amendments to the

Constitution are made by way of addition, substitution, repeal. The Attorney General is right in his submission that the expression "amendment of this Constitution" has a clear substantive meaning in the context of a written Constitution and it means that any part of the Constitution can be amended by changing the same either by variation, addition of repeal.

889. The words "Amendment of this Constitution may be initiated" and the words "Constitution shall stand amended in accordance with the terms of the Bill" in Article 368

indicate that the word "amendment" is used in an unambiguous and clear manner. The

Attorney General said that our Constitution is not the first nor is the last one to use the

word "amendment". The American Constitution in 1787 used the word "amend".

Several

Constitutions of other countries have used the word "amend". The word "amend" is used

in a Constitution to mean any kind of change. In some Constitutions the words alteration

or revision have been used in place of the word amend or along with the word amendment. Some times alteration and revision of the Constitution are also spoken of as

amendment of the Constitution.

890. Constitutional provisions are presumed to have been carefully and deliberately

framed. The words alterations or amendments, the words amendments or revisions, the

words revision and alteration are used together to indicate that these words have the same

meaning in relation to amendment and change in Constitution.

891. The meaning and scope of amending power is in the object and necessity for amendment in a written Constitution.

892. The various amendments which have already been carried out to our Constitution

indicate that provisions have been added, or varied or substituted. The Attorney General

gave two correct reasons for the object and necessity of the power of amendment in a

written Constitution. First, the object and necessity of amendment in a written Constitution means that the necessity is for changing the Constitution in an orderly

manner, for otherwise the Constitution can be changed only by an extra Constitutional

method or by revolution, Second, the very object of amendment is to make changes in the

fundamental law or organic law to make fundamental changes in the Constitution, to

change the fundamental or the basic principles in the Constitution. Otherwise there will

be no necessity to give that importance to the high amending power to avoid revolution.

893. The object of amendment is to see that the Constitution is preserved.

Rebellion or

revolution is an illegal channel of giving expression to change. The "consent of the

governed" is that each generation has a right to establish its own law. Conditions change.

Men Change, Opportunities for corresponding change in political institutions and principles of Government therefore arise. An unamendable Constitution was the French

Constitution which by an amendment to the Constitution adopted in 1884 declared that

the National Assembly shall never entertain a proposal for abolition of the republican

form of Government. The United States Constitution provided that no amendment could

be made prior to 1808 affecting the First and Fourth Clauses of Section 9 of Article 1

relative to the prohibition of the importation of slaves, and that no State without its

consent shall be deprived of equal suffrage in the Senate. These are examples of limiting

the sovereign power of the people to change the Constitution.

894. An unamendable Constitution is said to be the worst tyranny of time.

Jefferson said

in 1789 that each generation has a right to determine a law under which it lives. The earth

belongs in usufruct to the living; the dead have neither powers nor rights over it. The

machinery of amendment is like a safety valve. It should not be used with too great

facility nor should be too difficult. That will explode and erode the Constitution.

895. Most Constitutions are rigid in the sense that they are amendable only by a different

process than that by which ordinary laws may be altered. Thus they distinguish clearly

between the constituent power and the legislative power, each being exerciseable by

different organs according to different processes. Chief Justice Marshall said that the

opponents of change want changes just as much as any one else. They want however to

determine what the changes shall be.

896. Amendment is a form of growth of the Constitution inasmuch as amendment means

fundamental changes. The Constitution devises special organs or special methods to

amend or change the fundamental principles that create the Government. The methods of

amendment may be by ordinary law making body as in Great Britain or by the ordinary

law making body with special procedure or unusual majority or by special organs of

government created for the purpose such as Constitutional convention or by the electorate

in the form of referendum or of initiating a referendum. In case a written Constitution

makes no provision for amendment it is usually held that the national law making body

by ordinary procedure may amend the Constitution. If a Constitution provides the method

of amendment that method alone is legal. Any other method of amendment would be a

revolution. The deliberative and restrictive processes and procedure ensure a change in

the Constitution in an orderly fashion in order to give the expression to social necessity

and to give permanence to the Constitution.

897. The people expressed in the Preamble to our Constitution gave the Constitution

including the power to amend the Constitution to the bodies mentioned in Article 368.

These bodies represent the people. The method to amend any part of the Constitution as

provided for in Article 368 must be followed. Any other method as for example convening Constituent Assembly or Referendum will be extra Constitutional or revolutionary. In our Constitution Article 368 restricts only the procedure or the manner

and form required for amendment but not the kind or the character of the amendment that

may be made. There are no implied limitations to the amending power. The Attorney

General summed up pithily that the Constitution Acts not only for the people but on the people.

898. The Attorney General relied on several American decisions in support of these

propositions. First, the word "amendment" does not mean improvement. The view in *Livermore v. Waite* 102 Cal. 118 of a single learned Judge that amendment means improvement was not accepted in *Edwards v. Lessor* South Western Reporter Vol. 33, p.

1130. Second, ratification by people of States would be void when a federal amendment

proposed by Congress is required to be ratified by the legislatures of the States. *Ex-parte*

Dillon Federal Reporter No. 262 p. 563. The legislature is a mere agency for ratification

of a proposed amendment. *Ex-parte Dillon* did not accept the view of the learned single

Judges in *Livermore v. Waite* that amendment means only improvement. Third, the argument that the word "amendment" carries its own limitations regarding fundamental

principles or power of State or control of the conduct of the individuals by devising a

method of referendum by State legislatures is adding a new method of amendment. This

is not permissible. *Feigenspan v. Bodine* 264 Federal Reporter 186. The only method of

amendment is that prescribed by the Constitution. The theory of referendum by State

legislatures is not valid. Fourth, the assumption that ratification by State legislatures wi

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voice the will of the people is against the prescribed method of amendment and grant of

authority by the people to Congress in the manner laid down in Article V of the American

Constitution. It is not the function of Courts or legislative bodies to alter the method

which the Constitution has fixed. Ratification is not an act of legislation. It derives its

authority from the Constitution. *Hawke v. Smith* 253 U.S. 221; *Dillon v. Gloss* 256 U.S.

358, *Leser v. Garnett* 258 U.S. 130. Fifth, the power of amendment extends to every part of the Constitution. In amending the Constitution the General Assembly acts in the character and capacity of a convention expressing the supreme will or the sovereign people and is unlimited in its power save by the Constitution. Ex-parte Mrs. D.C. Kerby
American Law Reports Annotated, Vol. 36, p. 1451. Sixth, the argument that amendments which touch rights of the people must be by convention is rejected by Supreme Court in American Article V of the American Constitution is clear in statement and meaning and contains no ambiguity. Where the intention is clear there is no room for construction. *Rhode Island v. Palmer* 253 U.S. 350; *U.S. v. Sprague* 282 U.S. 716. Seventh, principles of the Constitution can be changed under Article V *Schneiderman v. United States of America* 320 U.S. 118. Eight, the Constitution provides the method of alteration. While the procedure for amending the Constitution is restricted here is no restraint on the kind of amendment that may be made. *Whitehall v. Elkins* 389 U.S. 54.
899. Except for special methods of amendment in a rigid or controlled Constitution although the methods may vary in different Constitutions and except for express limitations, if any, in rigid or controlled Constitutions, the meaning and scope of the amending power is the same in both the flexible and rigid forms.
900. The flexible Constitution is one under which every law of every description can be legally changed with the same ease and in the same manner by one and the same body. Laws in a flexible Constitution are called Constitutional because they refer to subjects supposed to affect the fundamental institutions of the State, and not because they are legally more sacred or difficult to change than other laws.
901. A rigid Constitution is one under which certain laws generally known as Constitutional or fundamental laws cannot be changed in the same manner as ordinary laws. The rigidity of the Constitution consists in the absence of any right of the legislatures when acting in its ordinary capacity to modify or repeal definite laws termed Constitutional or fundamental. In a rigid Constitution the term "Constitution" means a particular enactment belonging to the Articles of the Constitution which cannot be legally changed with the same ease and in the same manner as ordinary laws.
902. The special machinery for Constitutional amendment is the limitation of the power of the legislature by greater law than by the law of the ordinary legislation. The Constituent Assembly knowing that it will disperse and leave the actual business of

legislation to another body, attempts to bring into the Constitution that it promulgates as many guides to future action as possible. It attempts to arrange for the "recreation of a constituent assembly" whenever such matters are in future to be considered, even though that assembly be nothing more than the ordinary legislature acting under certain restrictions. There may be some elements of the Constitution which the constituent assembly wants to remain unalterable. These elements are to be distinguished from the rest. The Fifth Clause in the United States Constitution is that no State without its own consent shall be deprived of its equal suffrage in the Senate. The Attorney General rightly said that just as there are no implied limitation in flexible Constitutions similarly there are no implied limitations in a rigid Constitution. The difference is only in the method of amendment. Amendment can be made by ordinary legislature under certain restrictions, or by people through referendum or by majority of all the units of a federal State or by a special convention.

903 In a rigid Constitution the legislatures by reason of their well matured long and deliberately formed opinion represent the will of the undoubted majority. But even such will can be thwarted in the amendment of the organic law by the will of the minority. In case where the requisite majority is not obtained by the minority thwarting an amendment, there is just as much danger to the State from revolution and violence as there is from what is said to be the caprice of the majority. The safeguards against radical changes[™] thus represent a better way and a natural way of securing deliberation, maturity and clear consciousness of purpose without antagonising the actual source of power in the democratic state.

904. The term "amendment" connotes a definite and formal process of Constitutional change. The force of tradition and custom and the judicial interpretation may all affect the organic structure of the State. These processes of change are the evolution of Constitution.

905. The background in which Article 368 was enacted by the Constituent Assembly has

an important aspect on the meaning and scope of the power of amendment.

906. On 12 November, 1946 Sir B.N. Rau Constitutional Adviser prepared a brochure

containing Constitution of the British Commonwealth Countries and the Constitutions of

other countries. Different countries having different modes of amendments were referred

to. In the same volume the fundamental rights under 13 heads were extracted from

selected countries like U.S.A., Switzerland, Germany, Russia, Ireland, Canada, Australia.

Two features follow from that list. First, there is no absolute standard as to what constitutes fundamental right. There is no such thing as agreed fundamental rights of the world. Second, fundamental rights which are accepted in our Constitution are not superior to fundamental rights in other Constitutions nor can it be said that the

fundamental rights are superior to Directive Principles in our Constitution.

907. On 17 March, 1947 a questionnaire was circulated under the subject as to what

provisions should be made regarding the amendment of the Constitution. The draft clause

of amendment to the Constitution prepared by the Constitutional Adviser at that time

indicates that an amendment may be initiated in either House of the Union Parliament

and when the proposed amendment is passed in each House by a majority of not less than

two thirds of the total number of members of that House and is ratified by the legislatures

of not less than two thirds of the units of the Union, excluding the Chief Commissionersâ™

Provinces, it shall be presented to the President for his assent; and upon such assent being

given the amendment shall come into operation. There were two explanations to that clause.

908. On 29 April, 1947 Shri Santhanamâ™s amendment to the draft clause was accepted.

The amendment was "that this clause also if necessary may be amended in the same way

as any other clause in the Constitution". In June, 1947 the drafting of the amending clause

started. Originally it was Numbered 232. Eventually, Articles 304 and 305 came into

existence in place of draft Article 232. The first draft of the amendment clause was given

by Sir B.N. Rau in March, 1947. By June, 1947 and thereafter he recommended the procedure favoured by Sir Alladi Krishnaswami Ayyar and Sir Gopalswami Ayyangar, namely, passage by two thirds majority in Parliament and ratification by like majority of

Provincial legislatures. On 21 February, 1948 the draft Constitution was ready. Draft

Articles 304 and 305 related to amendment Article 305 provided for reservation of seats

for minorities for ten years unless continued in operation by an amendment of the

Constitution.

909. The following features emerge. First, the Constituent Assembly made no distinction

between essential and non-essential features. Secondly, no one in the Constituent

Assembly said that fundamental rights could not be amended. The framers of the

Constitution did not have any debate on that. Thirdly, even in the First Constitution Amendment debate no one doubted change or amendment of fundamental rights. At no stage it appeared that fundamental rights are absolute. While a Constitution should be made sound and basic it should be flexible and for a period it should be possible to make necessary changes with relative facility.

910. Certain amendments to Article 304 were proposed. One proposed amendment No. 118 was that amendment was to be passed in two Houses by a clear majority of the total membership of each House. Another proposed amendment No. 210 was that for a period of three years from the commencement of the Constitution, any amendment certified by the President to be not one of substance might be made by a simple majority. This alsoTM stated that it would include any formal amendment recommended by a majority of the Judges of the Supreme Court on the ground of removing difficulties in the administration of the Constitution or for the purpose of carrying out the Constitution in public interest.

The third proposed amendment No. 212 was that no amendment which is calculated to infringe or restrict or diminish the scope of any individual rights, any rights of a person or persons with respect to property or otherwise, shall be permissible and any amendment which is or is likely to have such an effect shall be void and ultra vires of any legislatur e.

It is noteworthy that this amendment was withdrawn. See Constituent Assembly Debates Vol. IX p. 1665.

911. In the first category the framers devised amendment by Parliament by a simple majority. These are Articles 2 and 4 which deal with States. As far as creation or reConstitution of States is concerned, it is left to Parliament to achieve that by a simple majority. Again, draft Article 148A which eventually became Article 169 dealing with Upper Chambers in the States gave Parliament power to abolish the Upper Chambers or to create new Second Chambers. Schedules 5 and 6 were left to be amended by Parliament by simple majority. The second category of amendment requires two thirds majority. It is in that connection that the statement of Dr. Ambedkar "If the future Parliament wishes to amend any particular Article which is not mentioned in Part III or Article 304 all that is necessary for them is to have the two thirds majority then they can amend it" was invoked by Mr. Palkhivala to support his submission that Part III was unamendable. That is totally misreading the speech. The speech shows that some Articles

would be amendable by bare majority, others would require two thirds majority and the third category would require two thirds majority plus ratification by the States.

912. Proceedings in the Constituent Assembly show that the whole Constitution was taken in broad prospective and the amendments fell under three categories providing for simple majority, or two thirds; majority or two thirds majority and ratification by the States. These different procedures were laid down to avoid rigidity.

913. The Constitution First Amendment Act which added Article 15 (4), substituted words in Articles 19(2) and Article 19(6), inserted Article 31A indicates interesting features. The two criticisms at that time were as to what was the hurry and secondly that the Government was trying to take more power to itself. The answers are that a Constitution which is responsive to the people's will and their ideas and which can be varied here and there, will command respect and people will not fight against change.

Otherwise, if people feel that it is unchangeable and cannot be touched, the only thing to be done by those who wish to change it is to try to break it. That is a dangerous thing and a bad thing.

914. In this background there is no doubt about the meaning and scope of Article 368.

The Attorney General rightly said that if there be any doubt contemporaneous practical exposition of the Constitution is too strong and obstinate to be shaken or controlled. In

Mopherson v. Blacker 146 U.S. 1 it is said that where plain and clear words occur there is

no difficulty but where there is doubt and ambiguity contemporaneous and practical

exposition is a great weight. In The Automobile Transport (Rajasthan) Ltd. v. The State

of Rajasthan and Ors. (1963) 1 S.C.R. 491 this Court took notice of the feature that

Constitution makers had deep knowledge of Constitutions and Constitutional problems of

other countries.

915. Mr. Seervai relying on British Coal Corporation v. King (1935) A.C. 500 submitted

that in interpreting a constituent or organic statute that construction most beneficial to t

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widest possible amplitude of powers must be adopted. A strict construction applicable to

penal or taxing statute will be subversive of the real intention of Parliament if applied to

an Act passed to ensure peace, order and good government. Largest meaning is given to

the allocated specific power. If there are no limitations on the power it is the whole

power. Grant of power of amendment cannot be cut down except by express or implied limitations. The conclusion is that the meaning of the word amendment is wide and not restricted.

916. The contention of Mr. Palkhivala on behalf of the petitioner is that under Article 368 as it stood prior to the amendment there were implied and inherent limitations on the power of amendment. It was said that the word "amendment" would preclude the power to alter or destroy the essential features and the basic elements and the fundamental principles of the Constitution. This contention was amplified as follows. The Constitution is given by the people unto themselves. The power to decide upon amendment is given to the 5 year Parliament which is a creature of the Constitution. Article 368 does not start with the non-obstante clause. Article 368 uses the word "amendment" simpliciter. Less significant amendment powers in others parts of the Constitution use the words "add, alter, repeal or vary" in addition to the word "amendment", as will appear in Articles 31B, 25(b), 252(2), 372, 372A(2), paragraph 7 Schedule 5, paragraph 21 Schedule 6. Article 368 talks of an amendment of this Constitution and does not extend the amending power to "all or any of the provisions of this Constitution". On a wide construction of the word "amendment" all fundamental rights can be taken away by the requisite majority whereas much less significant matters require the concurrence of at least half the States under the proviso to that Article.

917. The basic human freedom are all of the most fundamental importance to all the States and all the citizens. Article 32 is no less important to the citizens of States than Article 226. The Preamble is not a part or provision of the Constitution. Therefore, the Preamble cannot be amended under Article 368. The nature and the contents of the Preamble are such that it is incapable of being amended. If the Preamble is unalterable it necessarily follows that those features of the Constitution which are necessary to give effect to the Preamble are unalterable. Fundamental rights are intended to give effect to the Preamble. They cannot, therefore, be abridged or taken away. The provisions of Article 368 themselves can be amended under that very Article. If the word "amendment" is read in the widest sense Parliament will have the power to get rid of the requisite majority required by Article 368 and make any Constitutional amendments possible by bare majority, Parliament can provide that hereafter the Constitution shall be

unamendable. Parliament can reduce India to a status which is neither sovereign nor democratic nor republic and where the basic human rights are conspicuous by their absence.

918. Mr. Palkhivala submits that the principle of inherent or implied limitations on power to amend the controlled Constitution stems from three basic features. First, the ultimate legal sovereignty resides in the people. Second, Parliament is only a creature of the Constitution. Third, power to amend the Constitution or destroy the essential features of the Constitution is an application of ultimate legal sovereignty.

919. Mr. Palkhivala enumerated 12 essential features. These were as follows :

(1) The supremacy of the Constitution. (2) The sovereignty of India. (3) The integrity of the country. (4) The democratic way of life. (5) The republican form of Government. (6) The guarantee of basic human rights elaborated in Part III of the Constitution. (7) A secular State. (8) A free and independent judiciary. (9) The dual structure of the Union and the States. (10) The balance between the legislature, the executive and the judiciary. (11) a Parliamentary form of Government as distinct from the presidential form of Government.

(12) Article 368 can be amended but cannot be amended to empower Parliament to alter or destroy any of the essential features of the Constitution, make the Constitution literally or practically unamendable, make it generally amendable by a bare majority in Parliament, confer the power of amendment either expressly or in effect on the State Legislatures and delete the proviso and deprive the States of the power of ratification which is today available to them in certain broad areas.

920. The Constitution 24th Amendment Act was impeached by Mr. Palkhivala on three grounds. First, by substituting the words "amend by way of addition, variation or repeal"

in place of the word "amendment" in Article 368 the power was widened. Second, the

24th Amendment made explicit that when Parliament makes a Constitutional amendment

under Article 368 it acts in exercise of constituent power. Third, it had provided by

amendment in Articles 13 and 368 that the power in Article 13(2) against abridging or

taking away of the fundamental rights shall not apply to any amendment under Article

368. The Constitution 24th Amendment Act is, therefore, to be construed as empowering

Parliament to exercise full constituent power of the people and to vest in Parliament the

ultimate legal sovereignty of the people as authorising Parliament to alter or destroy all o

r any of the essential features, basic elements and fundamental principles of the Constitution. Likewise, Parliament is construed by the Constitution 24th Amendment Act

to be authorised to damage or destroy the essence of all or any of the fundamental rights.

Therefore, the amendment must be illegal and invalid.

921. In the alternative it was submitted on behalf of the petitioner that if the Constitution

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24th Amendment is valid it can be only on a reading down of the amended provisions of

Article 13 and 368 which reading would preserve the original inherent and implied

limitations. Even after the Constitution 24th Amendment Act Parliament will have no